



January 6, 2026

Margo Bugniazet
AON RISK SERVICES NORTHEAST, INC.
165 BROADWAY STE 3201 ONE LIBERTY PLAZA
NEW YORK, NY 10006-1404

Re: BCRED Emerald JV LP
Investment Management Solutions
Policy Number 652537360
Expiration Date: 06/26/2026

Dear Margo,

We are pleased to enclose Policy Number 652537360 for BCRED Emerald JV LP. We trust that this policy meets with the specifications outlined in our quotation (number 6347674201). Please review it carefully to confirm this. Should you detect any problem, please contact me as soon as possible.

If commissions or other compensation are payable hereunder, Insurance Producer will comply with all applicable federal and state laws, rules, regulations and/or orders governing disclosure by an agent, broker or producer to an insured or prospective insured of commissions or other compensation.

We appreciate the opportunity to do business with BCRED Emerald JV LP and with you. If you should have any comments, questions, or concerns, please do not hesitate to contact me.

Sincerely,

A handwritten signature in dark ink that reads "Danielle McGrady". The signature is fluid and cursive.

Danielle McGrady
Underwriting Director
(212) 440-3845
danielle.mcgrady@cna.com



INVESTMENT MANAGEMENT LIABILITY SOLUTIONS
DECLARATIONS

NOTICE:

THIS POLICY APPLIES ONLY TO ANY CLAIM FIRST MADE AGAINST THE INSURED DURING THE POLICY PERIOD. CLAIMS MUST BE REPORTED TO THE INSURER IN ACCORDANCE WITH THE POLICY. THE LIMIT OF LIABILITY AVAILABLE TO PAY SETTLEMENTS OR JUDGMENTS WILL BE REDUCED BY DEFENSE COSTS. DEFENSE COSTS WILL BE APPLIED TO THE RETENTION. THE INSURER SHALL NOT BE LIABLE FOR DEFENSE COSTS OR ANY OTHER AMOUNT UPON EXHAUSTION OF THE APPLICABLE LIMIT OF LIABILITY.

THESE POLICY FORMS AND THE APPLICABLE RATES ARE EXEMPT FROM THE FILING REQUIREMENTS OF THE NEW YORK STATE INSURANCE DEPARTMENT. HOWEVER, SUCH FORMS AND RATES MUST MEET THE MINIMUM STANDARDS OF THE NEW YORK INSURANCE LAW AND REGULATIONS.

PLEASE REVIEW THE POLICY CAREFULLY AND DISCUSS THE COVERAGE WITH YOUR INSURANCE AGENT OR BROKER.

Terms in bold face type have the special meaning. See the DEFINITIONS section of this Policy.

NAMED INSURED AND ADDRESS		PRODUCER
Item 1.	BCRED Emerald JV LP 345 Park Avenue New York, NY 10154	AON RISK SERVICES NORTHEAST, INC. Margo Bugniazet 165 BROADWAY STE 3201ONE LIBERTY PLAZA NEW YORK, NY 10006-1404
Attn:		
CUSTOMER NUMBER		INSURER
882267		Continental Casualty Company
POLICY NUMBER		151 North Franklin Street Chicago, IL -60606
652537360		A stock insurance corporation hereinafter the “Insurer”

Item 2. **Policy Period:** 6/26/2025 to 6/26/2026
12:01 a.m. local time at the address stated in Item 1.

Item 3. Policy Premium: \$150,000

Item 4. Notices to Insurer

Claims:
CNA – Claims Reporting
P.O. Box 8317
Chicago, IL 60680-8317
Email: SpecialtyNewLoss@cna.com
Fax Number: 866-773-7504

All other notices:
CNA Global Specialty Lines
125 Broad Street, New York, NY

Item 5. **Extended Reporting Period**
a. Period: 365 days
b. Premium: 150% of Policy Premium



**INVESTMENT MANAGEMENT LIABILITY SOLUTIONS
DECLARATIONS**

- Item 6. Limit of Liability (Inclusive of **Defense Costs**)
- a. Policy Aggregate Limit of Liability:
\$5,000,000 for all **Loss** from all **Claims** for which this Policy provides coverage
 - b. Aggregate Coverage Part Limit of Liability - any Coverage Part for which a limit of liability is shown below is "Included":

\$5,000,000 for Investment Adviser Professional Liability Coverage Part

\$5,000,000 for Investment Adviser Management Liability Coverage Part

\$5,000,000 for Fund Management and Professional Liability Coverage Part
 - c. **Shareholder Derivative Demand Investigation Costs** Sublimit of Liability (exclusive of **Defense Costs** and subject to the Aggregate Limit of Liability): \$250,000

Item 7. Retentions

Retention applicable to:

Investment Adviser Professional Liability Coverage Part: \$500,000

Investment Adviser Management Liability Coverage Part: \$500,000

Fund Management and Professional Liability Coverage Part: \$500,000

Item 8. Prior or Pending Date: 6/26/2023

Item 9. Endorsements forming a part of this Policy at issuance:

CNA-91227-NYFTZ Investment Management Liability Solutions New York Free Trade Zone Endorsement
CNA-88796-XX Amend Definition Of Responsible Person Endorsement
CNA-81753-XX Cap On Losses From Certified Acts Of Terrorism Endorsement
CNA-81758-XX Notice Offer Of Terrorism Coverage Disclosure Of Premium Confirmation Of Acceptance
CNA-88764-XX Amend Advancement Of Defense Costs Endorsement (Advancement No Later Than 60 Days)
CNA-88799-XX Delete Unregistered Securities Exclusion Endorsement
CNA-88841-XX Private Company Endorsement (With Defense Costs Carveback for ERISA Violations and Unfair Competition Claims)
CNA-88862-XX Amend Notice Of Claim Endorsement(Material Prejudice Required)
CNA-91190-XX Amend Bodily Injury Exclusion Endorsement(Carveback For Shareholder Records)
CNA-91200-XX Amend Non-Indemnifiable Loss And Presumptive Indemnification Endorsement
CNA-92648-XX Amend Consent Endorsement
CNA-94051-XX Asset Protection Endorsement
CNA-94072-XX Amend Bodily Injury Exclusion Endorsement (Corporate Manslaughter Defense Costs, Mental Anguish and Emotional Distress and Records Carvebacks)
CNA-94239-XX Amend Other Insurance (Delete Stacking Provision)
CNA-94557-XX Mock Regulatory Compliance Examination Contribution Endorsement (Approved Compliance Consulting Firms)
CNA-94646-XX Amend Subrogation Endorsement
CNA-94867-XX Amend Definition Of Financial Insolvency Endorsement (Add Bondholders Committee)

**INVESTMENT MANAGEMENT LIABILITY SOLUTIONS****DECLARATIONS**

CNA-95207-XX State Amendatory Inconsistency Endorsement
CNA-95513-XX Amend Cancellation Provision Endorsement (Variable Number of DaysÆ Notice for The Insurer to Cancel)
CNA-96040-XX Amend Priority Of Payments Endorsement (Independent Directors, Insured Persons, Reimbursement, then Entity)
CNA-96042-XX Amend Definition of Defense Costs (Usual Hourly Rates; Document Production; E-Discovery Fees; and Pre-Claim Expenses)
CNA-96046-XX Amend Cooperation Provision Endorsement (Non-Waiver of Privilege, Fifth Amendment Rights or Reveal Confidential Information)
CNA-96048-XX Definition Of Additional Insured Amended Endorsement (Add - Industry Consultant, Entrepreneur-in-Residence, Advisor, or Expert)
CNA-96049-XXC Definition Of Informal Investigation Amended Endorsement (Add Inquiry)
CNA-96050-XX Amend Definition Of Professional Services Client Endorsement (Group Of Customers; Unaffiliated Investment Adviser)
CNA-96060-XX Definitions Of Executive And Loss Amended (CCO; Fines and Penalties)
CNA-96162-XX Definitions Of Fund Registered Fund And Private Fund Amended Endorsement
CNA-96496-XX Amend Other Insurance Endorsement (Primary to Insured PersonsÆ Personal Umbrella)
CNA-97279-XX Amend Conduct Exclusion Endorsement (Add Personal Qualifier and Foreign Jurisdiction; the Underlying Action)
CNA-98358-XX Amend Definition Of Loss Endorsement (FCPA and UK Bribery Act)
CNA-88807-XX Additional Insured Entity Endorsement
CNA-88899-XXC Cost of Corrections Endorsement
CNA-88798-XX Common Claim Tie-In Limits Endorsement
CNA-95087-XX Amend Other Insurance Section Endorsement (Primary To Specified Policy)

These Declarations, along with the completed and signed **Application**, the Policy, and any written endorsements attached shall constitute the contract between the **Insureds** and the Insurer.

Authorized Representative:

Date: 01/06/2026



INVESTMENT MANAGEMENT LIABILITY SOLUTIONS

GENERAL TERMS AND CONDITIONS

In consideration of the premium, and in reliance upon the **Application**, the Insurer and **Insureds** agree as follows:

I. COVERAGE PARTS

A Coverage Part is included within this Policy and affords coverage only if the Coverage Part is purchased as indicated by a corresponding Limit of Liability for that Coverage Part in Item 6.b. of the Declarations.

The terms and conditions in each Coverage Part apply only to such Coverage Part and shall not apply to any other Coverage Part.

If any provision in these General Terms and Conditions is inconsistent with the terms and conditions of any applicable Coverage Part, the terms and conditions of such Coverage Part shall control.

II. DEFINITIONS

Any defined word not found in the General Terms and Conditions shall have the meaning assigned to it in the applicable Coverage Part.

Additional Insured means any natural person who is:

1. a past, present or future advisory board or committee member, acting in his/her capacity on behalf of an **Insured Entity**;
2. an independent contractor, provided that such person is acting on behalf and at the specific direction of an **Insured Entity**, and only to the extent that such person is indemnified by an **Insured Entity**; or
3. added by endorsement.

Application means any signed application, whether the Insurer's or otherwise, including attachments to such applications, any public documents filed by an **Insured Entity** with the Securities and Exchange Commission ("SEC") within twelve (12) months prior to the inception of this Policy, and any other materials or representations provided to the Insurer by or on behalf of the **Insured** in connection with the underwriting or negotiation of the terms and conditions of this Policy.

Claim means:

1. a written demand (excluding a subpoena) for monetary, non-monetary, injunctive, or declaratory relief;
2. a written request for arbitration, mediation, or other alternative dispute resolution;
3. a written request to toll or waive a statute of limitations;
4. a civil, criminal, administrative, or regulatory proceeding commenced by the earlier of: (a) the return of service of a complaint or indictment upon an **Insured**; (b) the filing of an indictment or information with respect to an **Insured**, or (c) the arrest or detainment of an **Insured Person**;
5. an **Extradition**; or
6. a **Formal Investigation**,

against an **Insured** for a **Wrongful Act**, including any appeal therefrom. **Claim** shall also include an **Informal Investigation**. **Claim** shall not include a **Shareholder Derivative Demand**.

Unless specifically articulated otherwise herein, a **Claim** shall be deemed first made on the earliest of the date on which the **Claim** is first made against, served upon, or first received by any **Insured**, or the applicable notice or order is filed or entered.

Clean-Up Costs mean any fees, costs, or expenses, including legal and professional fees, incurred in testing for, monitoring, cleaning up, removing, containing, treating, neutralizing, detoxifying, or assessing the effects of **Pollutants**.

Defense Costs mean reasonable and necessary fees, costs, and expenses, incurred by an **Insured** in the investigation, defense, or appeal of any covered **Claim**, including the premium for appeal, attachment, or similar bonds



arising out of a covered judgment. **Defense Costs** shall not include: **Shareholder Derivative Demand Investigation Costs**, **Non-Party Witness Fees** or salaries, wages, fees, overhead, or benefit expenses of any **Insured Person**.

Domestic Partner means any person qualifying as such under any federal, state, or local law or under an **Insured Entity's** employee benefit plans.

Employee means any past, present, or future full-time, part-time, seasonal, or temporary employee, or any volunteer of an **Insured Entity**. **Employee** shall not include any **Executive**.

ERISA, COBRA or any Similar Act means the Employee Retirement Income Security Act of 1974, (including the Consolidated Omnibus Budget Reconciliation Act of 1985)(COBRA), as amended or any other similar federal, state, or local statutory or regulatory law in the United States.

Executive means any:

1. natural person who is a past, present, or future duly elected or appointed director, officer, trustee, governor of a corporation, management committee member of a joint venture, member of the board of managers of a limited liability company (or holder of a functionally equivalent position in a foreign jurisdiction), general partner or managing partner, of an **Insured Entity**;
2. natural person who is a past, present, or future In-House General Counsel or Risk Manager of the **Named Insured**; or
3. holder of such functionally equivalent position to those included in paragraph 1. above in an **Outside Entity** while serving at the specific request or direction of the **Named Insured**.

Executive shall not include an **Employee**.

Extended Reporting Period means the additional period of time purchased by an **Insured** after termination or cancellation (except for non-payment of premium) of this Policy within which to report a **Claim** subject to the provisions of Section VIII, Extended Reporting Period.

Extradition means a formal process by which an **Executive** located in any country is surrendered, or requested to surrender, to another country to respond to a criminal accusation, commenced by an arrest, detainment, or incarceration of an **Executive** by any foreign jurisdiction law enforcement authority outside of the United States.

Extradition Costs means reasonable and necessary fees, costs, and expenses incurred by an **Executive** in lawfully opposing or defending an **Extradition**. **Extradition Costs** shall not include salaries, wages, fees, overhead, or benefit expenses associated with any **Insured Person**.

Facilitation Costs means reasonable and necessary fees, costs, and expenses (including loan interest) incurred by an **Executive** in connection with a covered **Claim**, solely to facilitate the return of amounts required to be repaid by such **Executive** pursuant to a court ordered, statutory mandated, or settlement negotiated reimbursement of any amount to which such **Executive** was not legally entitled. **Facilitation Costs** shall not include the actual amounts required or sought to be repaid, reimbursed, disgorged, or otherwise surrendered by such **Executive**.

Financial Insolvency means:

1. the appointment of a receiver, conservator, liquidator, trustee, rehabilitator, or similar official, or creditors' committee to take control of, supervise, manage, or liquidate an **Insured Entity** or **Outside Entity**; or
2. the **Named Insured** becoming a debtor in possession under United States bankruptcy law.

Formal Investigation means any formal investigation of an **Insured** by a **Regulatory Body** alleging violations of securities laws or **ERISA, COBRA or any Similar Act** by such **Insured**, evidenced by a subpoena, grand jury subpoena, formal order or formal notice of investigation, search warrant, civil investigative demand, Wells Notice or target letter (within the meaning of Title 9, §11.151 of the United States Attorney's Manual), or SEC form 1661 or 1662, from a **Regulatory Body** identifying the nature of the investigation and specific allegations of **Wrongful Acts** against the **Insured**.

Fund means a **Registered Fund** or **Private Fund**.



Inadequate Consideration Claim means a **Claim** alleging that the price or consideration paid or proposed to be paid for the acquisition or completion of the acquisition of all or substantially all the ownership interest in or assets of an entity or an **Insured Entity** is inadequate.

Informal Investigation means:

1. any informal administrative or regulatory investigation of an **Insured Person** by a **Regulatory Body**, commenced by the **Insured Person's** receipt of:
 - (a) a written notice to produce documents that are solely in the possession and control of such **Insured Person** and relate to the **Insured Entity's** business activities; or
 - (b) a request for testimony or a request for an interview issued by a **Regulatory Body** directed to such **Insured Person** in his/her capacity as such; or
2. an **Internal Investigation**.

Informal Investigation shall not include any routine examinations, routine inspections, "sweep" examinations, general requests for information, or any other similar reviews, inquiries, or investigations.

Insured means any **Insured Person** or any **Insured Entity**.

Insured Person means an **Executive**, **Employee**, or **Additional Insured**.

Internal Investigation means any investigation commenced by or on behalf of the board of directors (or functionally equivalent management body) of an **Insured Entity**, against an **Executive**, in his/her capacity as such, to determine whether to bring a **Shareholder Derivative Suit** against such **Executive**. An **Internal Investigation** will be deemed commenced upon the **Executive's** receipt of a written communication indicating the initiation of the investigation.

Interrelated Wrongful Acts mean any **Wrongful Acts** that are causally connected by reason of any common fact, circumstance, situation, transaction, or event or series of common facts, circumstances, situations, transactions, or events.

Investment Banking Services means any advice or service relating to any aspect of corporate mergers, acquisitions, securities offerings, restructuring, divestitures, or investment banking.

Management Control means:

1. owning or controlling interests of an entity representing more than fifty percent (50%) of the right to control or manage such entity as evidenced by the present power to elect, designate or appoint the majority of the board of directors, management committee members, management board members, general partners, or managing partners of such entity, or
2. with respect to an entity having the present right, pursuant to written contract or an **Organizational Document**, to elect, designate or appoint the majority of the board of directors, management committee members, management board members, general partners, or managing partners of such entity.

Named Insured means the entity named in Item 1. of the Declarations, including such entity as a debtor in possession under United States bankruptcy law.

Non-Indemnifiable Loss means any **Loss** incurred by an **Insured Person** that an **Insured Entity** fails or refuses to pay, advance, or indemnify:

1. due to **Financial Insolvency**; or
2. because such indemnification is not permitted pursuant to law.

Non-Party Witness Fees means reasonable and necessary fees, costs, and expenses incurred by a non-party **Insured Person** when providing witness testimony in a covered **Claim**. **Non-Party Witness Fees** shall not include salaries, wages, fees, overhead, or benefit expenses associated with any **Insured Person**.

Organizational Document means the articles of incorporation or association, certificate of incorporation, charter, by-laws, offering memorandum, limited liability company agreement, partnership agreement, operating agreement, subscription agreement, advisory or management agreement, separate indemnification agreement, and all other



similar documents, instruments or certificates executed, adopted, or filed in connection with the creation, formation, organization, or governance of an **Insured Entity**, including any amendments thereto.

Outside Entity means any charitable not-for-profit entity exempt from federal income taxation, or any entity specifically included as an **Outside Entity** by endorsement to this Policy, provided that such entity is not an **Insured Entity**.

Policy Period means the period from the effective date of this Policy to the Policy expiration date stated in Item 2. of the Declarations, or its earlier termination or cancellation date. **Policy Period** shall also include the **Extended Reporting Period**, if purchased.

Pollutants mean any substance exhibiting hazardous characteristics as defined on any list of hazardous substances issued by the United States Environmental Protection Agency or any state, local, or foreign counterpart. **Pollutants** also mean, without limitation, any solid, liquid, gaseous or thermal irritant or contaminant, including smoke, vapor, soot, fumes, acids, alkalis, chemicals, or waste (including materials to be recycled, reconditioned or reclaimed), as well as any air emission, odor, waste water, oil or oil products, infectious or medical waste, asbestos, or asbestos products, or any noise.

Portfolio Company means any entity in which a **Fund** owns or controls (or previously owned or controlled) outstanding debt or equity securities of such entity.

Private Fund means any:

1. investment company:
 - (a) created or sponsored by an **Insured Entity** as of the effective date of this Policy which is listed on the Schedule of Private Funds attached to this Policy; or
 - (b) that has been terminated, merged, sold, or dissolved, including any series or portfolios of such investment company, but only for **Wrongful Acts** that occurred while such **Private Fund** was owned or managed by the **Insured Entity**;
2. affiliated parallel funds, master funds, feeder funds, blocker funds, special purpose entities, limited purpose entities, investment holding companies, or other entities created for the purpose of holding investments in the name or right of an investment company that is described in 1(a) or 1(b) above; or
3. entity general partner or entity managing general partner of a partnership, or entity managing member of a limited liability company, of an investment company that is described in 1(a) or 1(b) above.

Professional Services Client means a customer or client that has received, or has been rendered **Professional Services** by an **Insured**.

Registered Fund means any:

1. investment company registered under the Investment Company Act of 1940:
 - (a) as of the effective date of this Policy which is listed on the Schedule of Registered Funds attached to this Policy; or
 - (b) that has been terminated, merged, sold, or dissolved, including any series of portfolios of such investment company, but only for **Wrongful Acts** that occurred while such **Registered Fund** was sponsored or managed by the **Insured Entity**; or
2. series of portfolios of any investment company described in 1(a) above.

Regulatory Body means the SEC, Department of Justice, Attorney General, Commodities Futures Trading Commission, or a similar federal, state, local, or foreign government authority or any self-regulatory organization of which the **Insured** is a member.

Responsible Person means any past, present, or future Chairman, President, Chief Executive Officer, Chief Financial Officer, Chief Operating Officer, In-House General Counsel, or Chief Compliance Officer while holding such position or any holder of any functionally equivalent position in the **Named Insured**.

Securities Claim means that portion of a **Claim**:

1. brought by:
 - (a) any person or entity alleging, arising out of, based upon or attributable to the purchase or sale or offer or solicitation of an offer to purchase or sell any securities of an **Insured Entity**; or

- (b) a security holder of an **Insured Entity** with respect to such security holder's interest in securities of such **Insured Entity**, or
- 2. brought as a **Shareholder Derivative Suit**.

Shareholder Derivative Demand means any written demand letter by one or more shareholders of an **Insured Entity** upon the board of directors (or functionally equivalent management body) of such **Insured Entity** to commence an **Internal Investigation** or to bring a **Shareholder Derivative Suit**.

Shareholder Derivative Demand Investigation Costs mean reasonable and necessary fees, costs, and expenses incurred by an **Insured Entity** (including its board of directors or any committee of its board of directors) in connection with the investigation of or responding to a **Shareholder Derivative Demand**. **Shareholder Derivative Demand Investigation Costs** shall not include salaries, wages, fees, overhead, or benefit expenses associated with any **Insured Person** or any costs, fees, or expenses incurred in a **Securities Claim**.

Shareholder Derivative Suit means a lawsuit brought derivatively on behalf of an **Insured Entity** by a shareholder of such **Insured Entity** against:

- 1. an **Executive** of such **Insured Entity**; or
- 2. the **Insured Entity** as a nominal defendant.

Subsidiary means an entity in which the **Named Insured** has **Management Control** directly or indirectly through one or more other **Subsidiaries**:

- 1. on or before the effective date of this Policy; or
- 2. after the effective date of this Policy by reason or being created or acquired by an **Insured Entity** after such date, subject to paragraph 1.(a) in Section XI, Change of Control or Status of Insureds. **Subsidiary** does not include any **Fund** or **Portfolio Company**.

Takeover means:

- 1. the acquisition by another entity or person, or group of entities or persons acting in concert, of the:
 - (a) ownership or control of voting stock of the **Named Insured** resulting in such entity, person, or group owning or controlling more than fifty percent (50%) of the voting stock of the **Named Insured**;
 - (b) ownership or control of the **Named Insured** as evidenced by the present power to elect, designate, or appoint the majority of the board of directors, management committee members, management board members, general partners, or managing partners of the **Named Insured**; or
 - (c) assets of the **Named Insured** resulting in such entity, person, or group owning more than fifty percent (50%) of the total consolidated assets of the **Named Insured** as of the date of the **Named Insured's** most recent audited consolidated financial statement prior to such acquisition;
- 2. the merger of the **Named Insured** into another entity such that the **Named Insured** is not the surviving entity; or
- 3. the consolidation of the **Named Insured** with another entity.

Whistleblower Activity means the lawful activities of an **Insured Person** who causes information to be provided to, or otherwise assists in an investigation of, with respect to any alleged wrongdoing by an **Insured**, the attention of a government or law enforcement agency provided such activities are protected by statute with rights and remedies for retaliation recognized under federal, state, or local statutory or regulatory law.

III. GENERAL POLICY EXCLUSIONS

The Insurer shall not be liable for **Loss** under this Policy in connection with any **Claim**:

1. Contractual Liability

for:

- (a) an **Insured's** alleged liability under any contract or agreement, including express warranties or guarantees; or
- (b) the liability of others an **Insured** assumes under any contract or agreement,



provided that this exclusion shall not apply to:

- i. an **Insured's** liability that exists in the absence of such contract or agreement;
- ii. any **Claim** against an **Insured** by a **Professional Services Client** with respect to the rendering of, or failure to render, **Professional Services**;
- iii. **Non-Indemnifiable Loss**; or
- iv. any **Claim** based upon, arising out of, or relating to any actual or alleged breach of any **Organizational Document**.

2. **Employment Related**

based upon, or arising out of, any employment related matter involving any **Insured Person** or any applicant for employment with an **Insured Entity**.

3. **ERISA/COBRA**

for any actual or alleged violation of the responsibilities, obligations, or duties imposed upon fiduciaries by **ERISA, COBRA or any Similar Act** in connection with an **Insured Entity's** pension, employee benefit, or welfare plans.

4. **Illegal Profits/Deliberate Acts**

based upon or arising out of:

- (a) an **Insured** gaining any profit, remuneration, or financial advantage to which such **Insured** was not legally entitled; provided that this exclusion shall not apply to **Loss** in a **Securities Claim** attributable to actual or alleged violations of Section 11, 12, or 15 of the Securities Act of 1933, as amended; or
- (b) the committing of any deliberate criminal, or fraudulent act or omission, or any willful violation of law or regulation by an **Insured**,

established by a final non-appealable adjudication in any underlying action or proceeding other than a coverage action to determine the rights and responsibilities of any party to this Policy.

For purposes of determining the applicability of this exclusion:

- i. the conduct of an **Insured Person** shall not be imputed to any other **Insured Person**; and
- ii. only the conduct of a **Responsible Person** shall be imputed to the **Named Insured**.

5. **Insured Entity vs. Insured**

- (a) brought or maintained by, or on behalf of, an Insured Entity against another Insured Entity, or
- (b) brought or maintained by, or on behalf of, any:
 - i. Insured Entity against any Insured Person, or
 - ii. **Outside Entity** against an **Insured Person** serving in his/her capacity for such **Outside Entity**;

provided that this exclusion 5(b) shall not apply to any:

- a. **Defense Costs** which constitute **Non-Indemnifiable Loss**;
- b. **Shareholder Derivative Suit**;
- c. **Claim** brought, or maintained, at the recommendation of independent counsel, (such counsel approved by the Insurer), and the failure to make such **Claim** would result in liability of the **Independent Directors**;
- d. **Claim** against an **Insured Person** no longer serving in his/her insured capacity;
- e. **Claim** brought or maintained by, or on behalf of, an **Insured Entity** or **Outside Entity** while in **Financial Insolvency**; or
- f. **Claim** brought and maintained outside the United States or any common law jurisdiction.

6. **Prior Notice**



based upon or arising out of any **Wrongful Act** or any matter, fact, circumstance, situation, transaction, or event that has been the subject of any notice accepted under any policy of which this Policy is a direct or indirect renewal or replacement.

7. **Prior or Pending**

based upon or arising out of, or attributable to the same facts, circumstances, situations, transactions, or events, or the same series of facts, circumstances, situations, transactions, or events underlying or alleged in, any written demand, request, action, proceeding, claim, or **Claim** commenced against any **Insured** on or prior to the Prior or Pending Date set forth in Item 8. of the Declarations.

IV. **LIMIT OF LIABILITY/RETENTION/INDEMNIFICATION/ADVANCEMENT OF DEFENSE COSTS**

1. **Limits of Liability**

(a) **Policy Aggregate Limit of Liability**

The amount set forth Item 6.a. of the Declarations as the Policy Aggregate Limit of Liability is the maximum aggregate limit of the Insurer's liability for all **Loss** under all Coverage Parts of the Policy arising from **Claims** or **Shareholder Derivative Demands** first made against the **Insureds** during the **Policy Period**.

Each Coverage Part Aggregate Limit of Liability shall be part of, and not in addition to, the amount stated in Item 6.a. of the Declarations as the Policy Aggregate Limit of Liability for all **Loss** arising from all **Claims** or **Shareholder Derivative Demands** first made against the **Insureds** during the **Policy Period**.

(b) **Coverage Part Aggregate Limit of Liability**

The amount stated in Item 6.b. of the Declarations as the Coverage Part Aggregate Limit of Liability with respect to each Coverage Part shall be the aggregate limit of liability of the Insurer under such Coverage Part for all **Loss** arising from all **Claims** or **Shareholder Derivative Demands** first made against the **Insureds** during the **Policy Period**.

In the event more than one Coverage Part applies to a **Claim**, the higher Limit of Liability available for such **Claim** shall apply. In the event more than one Insuring Agreement in a Coverage Part applies to a **Claim**, the higher Limit of Liability available for such **Claim** shall apply.

(c) **Shareholder Derivative Demand Investigation Costs Sublimit of Liability**

The **Shareholder Derivative Demand Investigation Costs** Sublimit of Liability set forth in Item 6.c. of the Declarations is the aggregate limit of the Insurer's liability for all **Shareholder Derivative Demand Investigation Costs** arising from all **Shareholder Derivative Demands**, regardless of the number of **Shareholder Derivative Demands**, or Coverage Parts affording such coverage. The **Shareholder Derivative Demand Investigation Costs** Sublimit of Liability shall be part of and not in addition to the Policy Aggregate Limit of Liability set forth in Item 6.a. of the Declarations.

2. **Retention**

(a) The Insurer shall only be liable for **Loss** that is in excess of the applicable Retention stated in Item 7. of the Declarations for the applicable Coverage Part. Any applicable Retention shall be uninsured and borne by the **Insured**.

(b) A single Retention shall apply to **Loss** arising from all **Claims** alleging the same **Wrongful Act** or **Interrelated Wrongful Acts**. In the event that more than one Retention applies to **Loss** arising from a **Claim**, the higher Retention shall apply.

- (c) If the **Insured Entity** is indemnifying an **Insured Person** for **Non-Party Witness Fees**, the applicable Retention shall apply.
- (d) No Retention applies with respect to:
 - i. **Non-Indemnifiable Loss**; or
 - ii. **a Shareholder Derivative Demand**.

3. **Presumptive Indemnification and Advancement of Defense Costs**

It is agreed that each **Insured Entity** shall fulfill its indemnification obligations to each **Insured Person** to the fullest extent permitted by law.

The Insurer shall advance **Defense Costs** on a current basis, but no later than ninety (90) days after receipt and review of the legal bills and any supporting documentation reasonably requested by the Insurer. In the event that an **Insured Person** makes a written request for indemnification from an **Insured Entity** and the **Insured Entity** fails to respond, or refuses to indemnify an **Insured Person** within sixty (60) days of such request, then the Insurer, shall advance **Defense Costs**. Such advancement will continue until such time that the **Insured Entity** accepts the **Insured Person's** request for indemnification or the applicable Limit of Liability set forth in the Declarations has been exhausted, whichever occurs first.

The Insurer reserves all rights to recoupment with respect to any advancement of **Defense Costs**. Any such advancement of **Defense Costs** shall be repaid to the Insurer by the **Insureds**, severally according to their respective interests, if and to the extent it is determined that such **Defense Costs** are not insured under this Policy. The Insurer shall not seek repayment from an **Insured** of advanced **Defense Costs** that are uninsured pursuant to Exclusion 4, Conduct, in Section III, Exclusions, unless established by a final, non-appealable adjudication as specified therein.

Any advancement of **Defense Costs** by the Insurer shall reduce the respective Limit of Liability set forth in the Declarations. If the Insurer recovers any such **Defense Costs** paid, the amount of such **Defense Costs**, less all costs incurred by the Insurer to obtain such recovery, shall be applied to the applicable Coverage Part Limit of Liability.

V. **COOPERATION/ CONSENT/DUTY TO DEFEND/ ALLOCATION**

1. **Cooperation**

Each **Insured** shall, as a condition precedent to obtaining coverage under the Policy, give the Insurer full cooperation, assistance, and information as the Insurer may reasonably request. The **Insureds** shall do nothing that in any way increases the Insurer's liabilities or prejudices the Insurer's potential or actual rights of recovery. The failure of any **Insured Person** to give the Insurer cooperation, assistance, and information as required hereunder shall not impair the rights of any other **Insured Person** under this Policy.

2. **Insurer's Consent**

Subject to the next paragraph, the **Insureds** shall not agree to any settlement, make any offer of settlement, stipulate to any judgment, incur any **Defense Costs**, **Loss**, **Shareholder Derivative Investigative Costs**, **Extradition Costs**, **Facilitation Costs**, **Non-Party Witness Fees**, or any similar cost or expense, or admit any liability or assume any contractual obligation, without the Insurer's prior written consent, such consent not to be unreasonably withheld.

Notwithstanding the above, if the **Insureds** are able to settle all **Claims**, including all **Interrelated Wrongful Acts**, for an aggregate amount, including **Defense Costs**, not exceeding the applicable Retention, the Insurer's consent shall not be required for the settlement of such **Claims**.

3. **Duty to Defend**



The **Insureds** shall have the duty to defend under this Policy. The Insurer shall be entitled to effectively associate in the defense and the negotiation of any settlement of any **Claim**, payment of any **Loss**, costs, or expenses that appears reasonably likely to exceed the applicable Retention.

4. **Allocation**

The Insurer and the **Insureds** shall use their best efforts to determine a fair and proper allocation between **Loss** and any amount that is not covered **Loss** or any other amount, based on the relative legal and financial exposures of the covered parties to the covered matters. Failure of the Insurer and the **Insured** to agree to an allocation determination shall not preclude the Insurer from advancing **Defense Costs** in accordance with paragraph 3 in Section IV, Limit of Liability/Retention/Indemnification/ Advancement of Defense Costs.

If the **Insureds** and the Insurer cannot, after exerting their best efforts, agree on an allocation of insured and uninsured **Defense Costs**, the Insurer then shall advance the percentage of **Defense Costs** which the Insurer states to be fair and proper until a different allocation is agreed upon or determined pursuant to the provisions of this Policy and applicable law.

Any allocation or advancement of **Defense Costs** shall not apply to or create any presumption with respect to the allocation of other **Loss**.

VI. **SUBROGATION**

To the extent it pays any **Loss**, the Insurer shall be subrogated to all the **Insureds'** rights of recovery, including any right to indemnification from any entity, insurer, or other source. The **Insureds** shall cooperate and assist in securing such rights of recovery and indemnification.

VII. **NOTICE AND INTERRELATED CLAIMS**

1. **Notice of Claim**

The **Insureds** shall, as a condition precedent to the obligations of the Insurer under this Policy, give written notice to the Insurer of each **Claim** as soon as practicable after a **Responsible Person** first becomes aware of such **Claim**, but in no event later than:

- (a) ninety (90) days after the termination or expiration of the **Policy Period** or Coverage Part, provided that the Policy has not been renewed by the Insurer or extended by purchase of an **Extended Reporting Period**; or
- (b) the expiration of the **Extended Reporting Period**.

2. **Notice of Circumstances**

Should a **Responsible Person** elect to provide notice of circumstances which may reasonably be expected to give rise to a **Claim**, such notice shall be in writing and include the basis of the potential **Claim**, the alleged or potential **Wrongful Acts**, the remedy and potential damages sought, the parties involved, and when the **Insured** first became aware of such circumstances or allegations. Any **Claim** otherwise covered pursuant to this Policy that is subsequently made and that arises out of such notice of circumstances shall be deemed to have been first made during the **Policy Period** in which such written notice was received by the Insurer.

3. **Request for Specified Cost or Fees**

In the event that the **Insured** seeks coverage for **Shareholder Derivative Demand Investigative Costs**, or **Non-Party Witness Fees**, the **Insured** must submit a written notice to the Insurer which provides:

- (a) the date the **Shareholder Derivative Demand** was first received and a copy of the demand, and if not contained within the demand: identification of the parties involved and the remedy sought; or

- (b) with respect to **Non-Party Witness Fees**, the circumstances for the **Non-Party Witness Fee** request, including when the **Insured** was first advised of the circumstances and the nature of the testimony sought.

Any **Claim** otherwise covered pursuant to this Policy that is subsequently made and that arises out of a noticed **Shareholder Derivative Demand** shall be deemed to have been first made during the **Policy Period** in which such written notice was received by the Insurer.

4. **Interrelatedness**

With respect to any **Claims** involving the same **Wrongful Act** or **Interrelated Wrongful Acts** such **Claims** shall be deemed one **Claim** which was first made on the earlier of:

- (a) the date on which the earliest such **Claim** was first made; or
- (b) the earliest date valid notice was given by an **Insured** to the Insurer under this Policy or under any prior policy of any **Wrongful Act** or any fact, circumstance, situation, event, or transaction that underlies any such **Claim**.

In no event shall an individual lawsuit or proceeding constitute more than one **Claim**.

5. **To Whom Notices are Sent**

The **Insureds** shall give written notice to the Insurer by regular mail or email sent to the addresses specified in the Declarations. With proof of mailing, the date the written notice was sent shall be deemed the effective date of notice.

VIII. **EXTENDED REPORTING PERIOD**

- 1. If this Policy, or one or more Coverage Part(s), is canceled, or terminates for any reason other than non-payment of premium, the **Insureds** shall have the right to purchase an **Extended Reporting Period** for the premium and time period stated in Item 5. of the Declarations. In the event one or more Coverage Part is canceled or terminated, any purchased **Extended Reporting Period** shall apply only to such canceled or terminated Coverage Part(s).
- 2. The right to an **Extended Reporting Period** shall lapse unless written notice of election to purchase such Extended Reporting Period, together with payment of the specified premium, is received by the Insurer within sixty (60) days after the effective date of cancellation or termination of the Policy, or Coverage Part. In the event the **Named Insured** elects not to purchase an **Extended Reporting Period** and an individual **Insured** or group of **Insureds** elects to purchase such **Extended Reporting Period**, such **Extended Reporting Period** shall only apply to **Claims** against such **Insured** or group of **Insureds**, subject to paragraph 3 below.
- 3. If an **Insured** elects to purchase an **Extended Reporting Period**, coverage otherwise afforded by this Policy shall apply, subject to all terms and conditions, provided that such coverage will extend only to **Claims** that are: (a) first made during the **Extended Reporting Period**; (b) reported in accordance with paragraph 1, Notice of Claim in Section VII, Notice and Interrelated Claims; and (c) for **Wrongful Acts** taking place before the effective date of such cancellation or termination.
- 4. Any **Extended Reporting Period** purchased shall become part of the **Policy Period** extending such **Policy Period** to the expiration of the time period stated in Item 5. of the Declarations.
- 5. The premium for the **Extended Reporting Period** shall be deemed fully earned at the inception of the **Extended Reporting Period**.
- 6. There is no separate or additional Limit of Liability for any **Extended Reporting Period**.

IX. **TERMINATION OR CANCELLATION**



The Policy shall terminate at the earliest of the following events:

1. expiration of the **Policy Period**;
2. termination by the Insurer only for nonpayment of premium, in which case the Insurer shall provide to the **Named Insured** written notice of such termination which shall be effective twenty (20) days after receipt by the **Named Insured**; or
3. cancellation by the **Named Insured** by providing notice to the Insurer stating when such cancellation shall be effective.

Any return of premium shall be computed on a pro rata basis.

X. REPRESENTATIONS AND SEVERABILITY OF THE APPLICATION

The **Insureds** represent and acknowledge that the statements, representations, and information in the **Application** are true and accurate. This Policy is issued in reliance upon the truth and accuracy of such statements, representations, and information.

The **Application** is deemed a separate request for coverage by each **Insured**. As such, with respect to any statements, representations, and information in the **Application**, no knowledge possessed by any **Insured Person** shall be imputed to any other **Insured Person**.

In the event the statements, representations, or information in the **Application** contain any actual or knowing misrepresentation or omission which materially affects either the acceptance of the risk or the hazard assumed by the Insurer under this Policy, there shall be no coverage for any **Loss** on account of any **Claim** alleging, arising out of, or based upon any such misrepresentations or omissions:

1. with respect to any **Insured Person** who knew of such misrepresentations or omissions. For purposes of this paragraph, the knowledge of any **Insured Person** shall not be imputed to any other **Insured Person**;
2. with respect to the **Insured Entity**, to the extent it indemnifies any **Insured Person** identified in paragraph 1. above as having knowledge of the such misrepresentations or omissions, and
3. with respect to the **Named Insured**, if any **Responsible Person** knew of such misrepresentations or omissions.

The Insurer shall not be entitled to rescind or void this Policy with respect to any **Insured**.

XI. CHANGE OF CONTROL OR STATUS OF INSURED

1. SUBSIDIARIES
 - (a) Acquisition or Creation of a Subsidiary
 - i. Subject to paragraph ii. below, if before or during the **Policy Period** an **Insured Entity** acquires or creates **Management Control** of another entity, such that the acquired or newly created entity becomes a **Subsidiary**, then such **Subsidiary** and the **Insured Persons** thereof, shall be **Insureds** only with respect to **Wrongful Acts** occurring after such acquisition or creation.
 - ii. If a **Subsidiary** is acquired or created during the **Policy Period** pursuant to paragraph i. above and the total assets of such **Subsidiary** exceed twenty-five percent (25%) of the total assets of the **Named Insured** (as reflected in the most recent audited consolidated financial statements of such **Subsidiary** and the **Named Insured**, respectively, as of the date of such acquisition or creation), then the **Named Insured**, no later than sixty (60) days after the date of such acquisition or creation, shall provide written notice of such

acquisition or creation to the Insurer together with all information the Insurer may reasonably require. Coverage for any such acquired or created **Subsidiary** and its **Insured Persons** may be subject to additional or different terms and conditions and payment of additional premium.

If the **Named Insured** fails to give such notice and information in accordance with the foregoing, or refuses to accept additional or different terms and conditions or payment of additional premium, coverage for such acquired or created **Subsidiary** and its **Insured Persons** shall terminate with respect to **Claims** first made more than sixty (60) days after such acquisition or creation. Such coverage shall not be eligible for any **Extended Reporting Period** purchase.

- iii. There shall be no coverage under this Policy for any **Wrongful Act** or **Interrelated Wrongful Act** by any **Subsidiary** or by any persons or entities considered to be **Insureds** in i. or ii above, where such **Wrongful Act** or **Interrelated Wrongful Act** occurred in whole or in part before the effective date of the acquisition or creation of the **Subsidiary** by the **Insured Entity**.

(b) Cessation of a Subsidiary

If, during the **Policy Period**, an **Insured Entity** ceases to be a **Subsidiary**, then with respect to such **Subsidiary** and its **Insured Persons**, coverage shall continue for **Claims** for **Wrongful Acts** or **Interrelated Wrongful Acts** while such **Insured Entity** was a **Subsidiary** until this Policy is terminated or canceled. The Insurer reserves the right to offer an extension of coverage subject to additional or different terms and conditions and payment of additional premium.

2. FUNDS

(a) Omnibus Fund Coverage

Subject to paragraph (b) below, if before or during the **Policy Period**, the **Named Insured** or an **Insured Entity** purchases, sponsors, creates, or acquires control of a new entity or vehicle such that the newly created entity or vehicle becomes a **Fund**, then such **Fund** and the **Insured Persons** thereof, shall be **Insureds** only with respect to **Wrongful Acts** occurring after such purchase, sponsorship, creation, or acquisition.

(b) Fund in Excess of Assets Under Management Threshold

If a **Fund** is established during the **Policy Period** pursuant to paragraph (a) above and the total assets of such **Fund** exceeds twenty-five percent (25%) of the combined assets under management of all the **Insured Entities** (as reflected in the most recent audited consolidated financial statements of such **Fund** and the **Insured Entities**, respectively, as of the date of such purchase, sponsorship, creation, or acquisition) then the **Named Insured**, no later than sixty (60) days after the date of such purchase, sponsorship, creation, or acquisition shall provide written notice of such purchase, sponsorship, creation, or acquisition to the Insurer together with all information the Insurer may reasonably require. Coverage for any such **Fund** and its **Insured Persons** may be subject to additional or different terms and conditions and payment of additional premium.

If the **Named Insured** fails to give such notice and information in accordance with the immediate preceding paragraph above, or refuses to accept additional or different terms and conditions or payment of additional premium, coverage for such **Fund** and its **Insured Persons** shall terminate with respect to **Claims** first made more than sixty (60) days after such purchase, sponsorship, creation, or acquisition. Such termination of coverage shall not be eligible for any **Extended Reporting Period** purchase.

There shall be no coverage under this Policy for any **Wrongful Act** or **Interrelated Wrongful Act** by any **Fund** or by any persons or entities considered to be **Insureds** in (a) or (b) above, where such **Wrongful Act** or **Interrelated Wrongful Act** occurred in whole or in part before the effective date of the purchase, sponsorship, creation, or acquisition of the **Fund** by the **Named Insured** or **Insured Entity**.

(c) Cessation of a Fund

If, during the **Policy Period**, a **Fund** ceases to exist, then with respect to such **Fund** and its **Insured Persons**, coverage shall continue for **Claims** for **Wrongful Acts** while such **Fund** was an **Insured Entity** and in existence until this Policy is terminated or canceled. The Insurer reserves the right to offer an extension of coverage subject to additional or different terms and conditions and payment of additional premium.

3. TAKEOVER

In the event of a **Takeover**, during the **Policy Period**, coverage under this Policy shall continue until this Policy is otherwise terminated or canceled, but only with respect to **Claims** for **Wrongful Acts** occurring before the effective date of the **Takeover**, unless:

- (a) the Insurer is notified in writing of the **Takeover** prior to the **Takeover** effective date;
- (b) the Insurer agrees in writing to provide coverage for **Wrongful Acts** occurring on or after such effective date, subject to additional or different terms and conditions and payment of additional premium; and
- (c) the **Named Insured** accepts any additional or different terms and conditions and payment of additional premium required by the Insurer.

This Policy may not be canceled after the effective date of the **Takeover** and the entire premium for this Policy shall be deemed earned as of such effective date.

XII. OTHER INSURANCE

- 1. In the event **Loss** covered under this Policy is also covered under any other valid and collectible insurance policy, then this Policy shall apply as excess of the applicable retention and limit of liability of such other policy, unless such other insurance is written specifically as excess insurance of the Limits of Liability provided by this Policy. Notwithstanding the foregoing, this Policy shall apply as primary with respect to any personal umbrella or personal directorship liability insurance purchased by an **Insured Person**.
- 2. Any coverage afforded by this Policy shall apply specifically as excess of, and shall not contribute with, any fiduciary, environmental, cyber or employment practices liability policy.
- 3. Any coverage afforded by this Policy for a **Claim** against an **Executive** serving in his/her capacity as such for an **Outside Entity** shall apply specifically as excess of any insurance and/or indemnification available to such **Executive** from such **Outside Entity**. Provided however, any payment by the Insurer, or any affiliate of the Insurer, under another policy as a result of such **Claim** against an **Executive** while acting as such for an **Outside Entity** shall reduce, by the amount of such payment, the Insurer's Limit of Liability under this Policy with respect to such **Claim**.

XIII. ESTATES, LEGAL REPRESENTATIVES AND SPOUSES

The estates, heirs, legal representatives, assigns, spouses, and any **Domestic Partner** of **Insured Persons** shall be considered **Insureds** under this Policy; provided, coverage is afforded to such estates, heirs, legal representatives, assigns, spouses, and **Domestic Partners** only for a **Claim** arising solely out of their status as such and, in the case of a spouse or **Domestic Partner**, where such **Claim** seeks damages from marital community property, jointly held property, or property transferred from an **Insured Person** to such **Insured Person's** spouse, or **Domestic Partner**. No coverage is provided for any act, error, or omission of an estate, heir, legal representative, assign, spouse or **Domestic Partner** of an **Insured Person**. All terms and conditions of this Policy, including without limitation the Retention, applicable to **Loss** incurred by an **Insured Person**, shall also apply to **Loss** incurred by such estates, heirs, legal representatives, assigns, spouses, and **Domestic Partners**.

XIV. BANKRUPTCY



Bankruptcy or insolvency of any **Insured Entity** or any **Insured Person** shall not relieve the Insurer of any of its obligations hereunder.

The **Named Insured**, any **Insured Entity** and all **Insured Persons** agree not to oppose or object to any efforts by the Insurer or any **Insured** to obtain relief from any stay or injunction applicable to the proceeds of this Policy as a result of the commencement of any bankruptcy or insolvency proceeding.

XV. PRIORITY OF PAYMENTS

Any coverage afforded by this Policy is principally intended to benefit the **Insured Persons**. In the event that **Non-Indemnifiable Loss** and any other **Loss** are concurrently due, then the **Non-Indemnifiable Loss** shall be paid first. All other **Loss** shall be paid as it becomes due in accordance with the terms and conditions of this Policy.

XVI. NO ACTION AGAINST INSURER

1. No action shall be taken against the Insurer unless, as a condition precedent, there shall have been full compliance with all the provisions of this Policy.
2. No person or entity shall have any right under this Policy to join the Insurer as a party to any **Claim** against an **Insured** to determine such **Insured's** liability, nor shall the Insurer be impleaded by an **Insured** or their legal representatives in any such **Claim**.

XVII. CHANGES OR ASSIGNMENT

Notice to, or knowledge possessed by, any agent or other person acting on behalf of the Insurer shall not effect a waiver or a change in any part of this Policy or prevent the Insurer from asserting any right under the provisions of this Policy. The provisions of this Policy cannot be waived or changed except by written endorsement issued to form a part of this Policy.

Further, any assignment of interest under this Policy shall not bind the Insurer unless the Insurer's consent to such assignment is endorsed to this Policy.

XVIII. TERRITORY

Coverage shall apply worldwide.

XIX. NAMED INSURED AUTHORIZATION AND NOTICE

The **Insureds** agree that the **Named Insured** will act on behalf of all **Insureds** with respect to giving of all notice to the Insurer (except notices provided under Section VII, Notices and Interrelated Claims), the receipt of notices from the Insurer, the payment of the premiums, the receipt of any return premiums that may become due under this Policy, and the agreement to and acceptance of endorsements.

Any notices to the **Named Insured** under this Policy shall be provided to the **Named Insured** at the address provided in Item 1. of the Declarations. If properly mailed to the **Named Insured** at such address, the date of mailing shall constitute the date such notice was given.

XX. ENTIRE AGREEMENT

The **Insureds** agree that this Policy, including the **Application**, constitute the entire contract existing between them and the Insurer or any of its agents relating to this insurance.

XXI. VALUATIONS

All premiums, limits, retentions, **Loss**, and other amounts under this Policy are expressed and payable in United States of America currency. If any judgment, settlement, or any part of **Loss** is expressed or calculated in any



other currency, payment of such **Loss** due under this Policy will be made in the currency of the United States of America, at the rate of exchange published in The Wall Street Journal on the date the Insurer's obligation to pay such **Loss** is established, or, if not published on that date, on the date of next publication.

XXII. TRADE AND ECONOMIC SANCTIONS

This Policy does not provide coverage for an **Insured**, transaction, or that part of loss that is uninsurable under the laws or regulations of the United States concerning trade or economic sanctions.

IN WITNESS WHEREOF, the Insurer has caused this Policy to be executed by its Chairman and Secretary, but this Policy shall not be binding upon us unless completed by the attachment of the Declarations.

Chairman

A handwritten signature in blue ink, appearing to be 'D. W.', is written below the Chairman's title.

Secretary

A handwritten signature in blue ink, appearing to be 'S. B.', is written below the Secretary's title.



INVESTMENT MANAGEMENT LIABILITY SOLUTIONS

INVESTMENT ADVISER MANAGEMENT LIABILITY COVERAGE PART

I. INSURING AGREEMENTS

1. **Management Liability (Individual)**

The Insurer shall pay **Non-Indemnifiable Loss** on behalf of an **Insured Person** resulting from any **Claim** first made against such **Insured Person** during the **Policy Period**.

2. **Management Liability (Reimbursement)**

The Insurer shall pay **Loss** on behalf of an **Insured Entity**, for which an **Insured Entity** has indemnified an **Insured Person**, resulting from any **Claim** first made against such **Insured Person** during the **Policy Period**.

3. **Insured Entity Securities Liability**

The Insurer shall pay **Loss** on behalf of an **Insured Entity** resulting from a **Securities Claim** first made against such **Insured Entity** during the **Policy Period**.

4. **Shareholder Derivative Demand Investigation Costs**

The Insurer shall pay **Shareholder Derivative Demand Investigation Costs** on behalf of an **Insured Entity** resulting from any **Shareholder Derivative Demand** first made during the **Policy Period**.

II. SPECIAL DEFINITIONS

These definitions are in addition to the definitions set forth in the Section II, Definitions found in the General Terms and Conditions:

Independent Director means any past, present, or future duly elected or appointed director of an **Insured Entity** who has never been an officer or **Employee** of any **Insured Entity**.

Insured Entity shall mean the **Named Insured** and any **Subsidiary**.

Loss means those amounts that an **Insured** is legally obligated to pay as a result of any **Claim**, including awards, settlements, judgments, pre-judgment and post-judgment interest, plaintiffs' attorney fees, and costs agreed to in settlement of, or imposed as a result of a judgment. **Loss** shall include **Facilitation Costs**, **Extradition Costs**, **Non-Party Witness Fees**, and **Defense Costs**.

Loss shall also include:

1. punitive, exemplary, and multiplied damages if such punitive or exemplary damages are insurable in the jurisdiction which is most favorable to the **Insured**, provided that such jurisdiction has a substantial relationship to the relevant **Insureds**, to the Insurer, or to the **Claim** giving rise to such damages;
2. solely with respect to an **Insured Person**, penalties assessed against such **Insured Person** pursuant to the Foreign Corrupt Practices Act, 15 U.S.C. Sec. 78dd-2(g)(2)(B); and
3. solely with respect to Insuring Agreement 4, **Shareholder Derivative Demand Investigation Costs**.

However, **Loss**, other than **Defense Costs**, shall not include:

- (a) any amount attributable to the cost of any non-monetary relief, including without limitation any costs associated with compliance with any injunctive relief of any kind or nature;
- (b) fines, penalties, or taxes assessed or imposed against an **Insured**, with the exception of penalties in paragraph 2 above;
- (c) matters which are deemed uninsurable under the law pursuant to which this Policy is construed;
- (d) any amount for which an **Insured** is absolved from payment by reason of any covenant, agreement, or court order;



- (e) payment of any dividends or other similar profit distributions of the **Insured Entity** to any shareholder, stakeholder, or equity holder of the **Insured Entity**;
- (f) **Clean-Up Costs**;
- (g) the return of any fees, charges, or expenses; or
- (h) awards, settlements or judgments in connection with an **Inadequate Consideration Claim**.

Provided however, that the Insurer shall not assert that the portion of any damage, judgment, or settlement or **Defense Costs** that relate to any alleged violations of Section 11, 12, or 15 of the Securities Act of 1933 (as amended), is uninsurable and shall treat that portion of such damage, judgment, or settlement or **Defense Costs** as constituting **Loss** under this Policy, subject to all terms, conditions and exclusions of this Policy.

Professional Services means:

1. providing financial or economic advice regarding investments;
2. the trading of futures contracts and the trading of fixed income securities;
3. performing or meeting the responsibilities, obligations, or duties imposed upon fiduciaries by Sections 3(21) and 3(38) of the Employee Retirement Income Security Act of 1974, as amended;
4. investment and portfolio management, and asset allocation services;
5. the selection and oversight of investment advisers or third party service providers; or
6. the publication of written material in connection with any of the activities and services set forth in paragraphs 1. through 5. above,

provided the above are rendered by an **Insured** for, or on behalf of a **Professional Services Client** or **Fund**.

Wrongful Act means any actual or alleged error, misstatement, misleading statement, act, omission, neglect, or breach of duty committed, attempted or allegedly committed or attempted, by:

1. an **Executive** or **Additional Insured** in: (a) his/her capacity as such; or (b) any matter claimed against such **Executive** or **Additional Insured** solely by reason of his/her status as such;
2. an **Employee** in his/her capacity as such, but solely with respect to any **Securities Claim**; or
3. solely with respect to Insuring Agreement 3, an **Insured Entity**.

III. SPECIAL EXCLUSIONS

The following exclusions are in addition to the exclusions set forth in Section III, General Policy Exclusions found in the General Terms and Conditions:

The Insurer shall not be liable for **Loss** under this Policy in connection with any **Claim**:

- **Bodily Injury/Property Damage**

for any actual or alleged bodily injury (including death), sickness, disease, violation of any right of privacy, emotional distress, mental anguish, libel, slander or defamation of any person, or damage to or destruction of any tangible property including loss of use, provided that this exclusion shall not apply to any **Securities Claim** or **Non-Indemnifiable Loss**.

- **Professional Services**

for the rendering of, or the failure to render, any **Professional Services**.



INVESTMENT MANAGEMENT LIABILITY SOLUTIONS

INVESTMENT ADVISER PROFESSIONAL LIABILITY COVERAGE PART

I. INSURING AGREEMENTS

Investment Adviser Professional Liability

The Insurer shall pay **Loss** on behalf of an **Insured** resulting from any **Claim** first made against such **Insured** during the **Policy Period**.

II. SPECIAL DEFINITIONS

These definitions are in addition to the definitions set forth in Section II, Definitions found in the General Terms and Conditions:

Independent Director means any past, present, or future duly elected or appointed director of an **Insured Entity** who has never been an officer or **Employee** of any **Insured Entity**.

Insured Entity shall mean the **Named Insured** and any **Subsidiary**

Loss means those amounts that an **Insured** is legally obligated to pay as a result of any **Claim**, including awards, settlements, judgments, pre-judgment and post-judgment interest, plaintiffs' attorney fees, and costs agreed to in settlement of, or imposed as a result of a judgment. **Loss** shall include **Non-Party Witness Fees** and **Defense Costs**.

Loss shall also include punitive, exemplary, or multiplied damages if such punitive or exemplary damages are insurable in the jurisdiction which is most favorable to the **Insured**, provided that such jurisdiction has a substantial relationship to the relevant **Insureds**, to the Insurer, or to the **Claim** giving rise to such damages.

However, **Loss**, other than **Defense Costs**, shall not include:

- (a) any amount attributable to the cost of any non-monetary relief, including without limitation any costs associated with compliance with any injunctive relief of any kind or nature;
- (b) fines, penalties, or taxes assessed or imposed against an **Insured**;
- (c) matters which are deemed uninsurable under the law pursuant to which this Policy shall be construed;
- (d) any amount for which an **Insured** is absolved from payment by reason of any covenant, agreement, or court order;
- (e) payment of any dividends or other similar profit distributions of the **Insured Entity** to any shareholder, stakeholder, or equity holder of the **Insured Entity**;
- (f) the return of any fees, expenses, or charges; or
- (g) **Clean-Up Costs**.

Professional Services means:

- 1. providing financial or economic advice regarding investments;
- 2. the trading of futures contracts and the trading of fixed income securities;
- 3. performing or meeting the responsibilities, obligations, or duties imposed upon fiduciaries by Sections 3(21) and 3(38) of the Employee Retirement Income Security Act of 1974, as amended;
- 4. investment and portfolio management, and asset allocation services;
- 5. the selection and oversight of investment advisers or third party service providers; or
- 6. the publication of written material in connection with any of the activities and services set forth in paragraphs 1. through 5. above,

provided the above are rendered by an **Insured** for, or on behalf of, a **Professional Services Client** or **Fund**.

Professional Services shall not include any **Investment Banking Services** unless neither the **Insured** nor the client is a party or participant in the investment banking transaction.



Wrongful Act means any actual or alleged error, misstatement, misleading statement, act, omission, neglect, or breach of duty committed, attempted, or allegedly committed or attempted by an **Insured** (or any entity or natural person for whose acts the **Insured** is contractually or legally liable) while acting in such capacity, in the rendering of, or failing to render **Professional Services**.

III. SPECIAL EXCLUSIONS

The following exclusions are in addition to the exclusions set forth in Section III, General Policy Exclusions found in the General Terms and Conditions:

The Insurer shall not be liable to pay for **Loss** under this Policy in connection with any **Claim**:

- **Bodily Injury/Property Damage**

for any actual or alleged bodily injury (including death), sickness, violation of any right of privacy, disease, emotional distress, mental anguish, libel, slander or defamation of any person, or damage to or destruction of any tangible property, including loss of use thereof.

- **Securities Broker or Dealer**

for liability involving the activities of any **Insured** as a "broker" or "dealer" in securities, as defined in Sections 3(a)(4) and 3(a)(5), respectively, of the Securities Exchange Act of 1934; provided, that this exclusion shall not apply to the distribution, underwriting, or resale of securities purchased by an **Insured** directly from a **Registered Fund** solely for resale to shareholders of that fund.



INVESTMENT MANAGEMENT LIABILITY SOLUTIONS

FUND MANAGEMENT AND PROFESSIONAL LIABILITY COVERAGE PART

I. INSURING AGREEMENTS

1. **Fund Management and Professional Liability**

The Insurer shall pay **Loss** on behalf of the **Fund Insureds** resulting from any **Claim** first made against any **Fund Insured** during the **Policy Period**.

2. **Shareholder Derivative Demand Investigation Costs**

The Insurer shall pay **Shareholder Derivative Demand Investigation Costs** on behalf of an **Insured Entity** resulting from any **Shareholder Derivative Demand** first made during the **Policy Period**.

II. SPECIAL DEFINITIONS

These definitions are in addition to the definitions set forth in Section II, Definitions found in the General Terms and Conditions:

Fund Insureds means any **Fund** and its **Insured Persons**.

Independent Director means:

1. with respect to a **Private Fund** any past, present, or future duly elected or appointed director who has not and has never been an officer or **Employee** of the **Private Fund**; or
2. with respect to a **Registered Fund**, any director of a **Registered Fund** who is not an "Interested Person" of such **Registered Fund** as defined in Section 2(a)(19) of the Investment Company Act of 1940.

Insured Entity shall mean any **Fund**.

Loss means those amounts that an **Insured** is legally obligated to pay as a result of any **Claim**, including awards, settlements, judgments, pre-judgment and post-judgment interest, plaintiffs' attorney fees, and costs agreed to in settlement of, or imposed as a result of a judgment. **Loss** shall include **Facilitation Costs**, **Extradition Costs**, **Non-Party Witness Fees**, and **Defense Costs**.

Loss shall also include:

1. punitive, exemplary, and multiplied damages if such punitive or exemplary damages are insurable in the jurisdiction which is most favorable to the **Insured**; provided that such jurisdiction has a substantial relationship to the relevant **Insureds**, to the Insurer, or to the **Claim** giving rise to such damages;
2. solely with respect to an **Insured Person**, penalties assessed pursuant to the Foreign Corrupt Practices Act, 15 U.S.C. Sec. 78dd-2(g)(2)(B); and
3. solely with respect to Insuring Agreement 2, **Shareholder Derivative Demand Investigation Costs**.

However, **Loss**, other than **Defense Costs**, shall not include:

- (a) any amount attributable to the cost of any non-monetary relief, including without limitation any costs associated with compliance with any injunctive relief of any kind or nature;
- (b) fines, penalties, or taxes assessed or imposed against an **Insured**, with the exception of penalties in paragraph 2 above;
- (c) matters which are deemed uninsurable under the law pursuant to which this Policy is construed;
- (d) any amount for which an **Insured** is absolved from payment by reason of any covenant, agreement, or court order;
- (e) payment of any dividends or other similar profit distributions of the **Insured Entity** to any shareholder, stakeholder, or equity holder of the **Insured Entity**;
- (f) **Clean-Up Costs**;



- (g) the return of any fees, expenses, or charges;
- (h) awards, settlements or judgments in connection with an **Inadequate Consideration Claim**; or
- (i) the amount that represents the return of any contribution of capital to any **Insured Person** or **Employee** or any **Fund**.

Provided however, that the Insurer shall not assert that the portion of any damage, judgment, or settlement or **Defense Costs** that relate to any alleged violations of Section 11, 12, or 15 of the Securities Act of 1933 (as amended), is uninsurable and shall treat that portion of such damage, judgment, or settlement or **Defense Costs** as constituting **Loss** under this Policy, subject to all terms, conditions and exclusions of this Policy.

Professional Services means:

1. the capitalization, formation, operation, management, administration, and marketing of a **Fund**;
2. providing financial or economic advice regarding investments by an **Insured** for, or on behalf of, a **Fund**;
3. portfolio and asset management services performed by an **Insured** for, or on behalf of, a **Fund**, or
4. the selection and oversight of outside service providers and unaffiliated investment advisers by an **Insured** for, or on behalf of, a **Fund**.

Professional Services shall not include any **Investment Banking Services**, other than **Investment Banking Services** with respect to shares issued by a **Fund**, or the restructuring of a **Fund** or the voting of shares held in portfolios of a **Fund**.

Wrongful Act means any actual or alleged error, misstatement, misleading statement, act, omission, neglect, or breach of duty committed, attempted, or allegedly committed or attempted, by:

1. any **Insured Person** of a **Fund** in: (a) his/her capacity as such; or (b) any matter claimed against such **Insured Person** solely by reason of his/her status as such;
2. a **Fund** in its capacity as such, except while acting in such capacity rendering, or failing to render, professional services; or
3. any **Fund Insured** while acting in such capacity, in the rendering of, or failing to render, **Professional Services**.

III. SPECIAL EXCLUSIONS

The following exclusions are in addition to the exclusions set forth in Section III, General Policy Exclusions found in the General Terms and Conditions:

The Insurer shall not be liable for **Loss** under this Policy in connection with any **Claim**:

- **Bodily Injury/Property Damage**

for any actual or alleged bodily injury (including death), sickness, violation of any right of privacy, disease, emotional distress, mental anguish, libel, slander or defamation of any person, or damage to or destruction of any tangible property, including loss of use, provided that this exclusion shall not apply to:

1. emotional distress, mental anguish, or any actual or alleged libel, slander, oral or written publication of defamatory or disparaging material solely arising out of the rendering of, or failing to render **Professional Services**;
2. **Securities Claim**, or
3. **Non-Indemnifiable Loss**.

- **Securities Broker or Dealer**

for liability involving the activities of any **Fund Insured** as a "broker" or "dealer" in securities, as defined in Sections 3(a)(4) and 3(a)(5), respectively, of the Securities Exchange Act of 1934, provided, that this exclusion shall not apply to the distribution, underwriting, or resale of securities purchased directly from a **Registered Fund** by a distributor for resale to any broker or dealer.



- **Unregistered Securities**

asserting liability under any federal or state securities laws arising from the selling of the securities of any **Registered Fund** in a particular jurisdiction without registering or in excess of the number registered for sale in such jurisdiction; provided, that this exclusion shall not be applicable to the difference between the net asset value at which the securities of any such **Registered Fund** were sold and the net asset value of such securities at the time of their repurchase.



INVESTMENT MANAGEMENT LIABILITY SOLUTIONS NEW YORK FREE TRADE ZONE ENDORSEMENT

In consideration of the premium, it is understood and agreed that the Policy is amended as follows:

I. The following notice shall be added at the top of the General Terms and Conditions:

NOTICE: DEFENSE COSTS SHALL BE APPLIED TO, AND ACT AS A REDUCTION OF, UP TO 100% OF THE LIMITS OF INSURANCE. THIS COULD THEN RESULT IN SUCH LIMIT OF INSURANCE BECOMING COMPLETELY EXHAUSTED BY THE PAYMENT OF DEFENSE COSTS. THE INSURER SHALL NOT BE LIABLE FOR ANY DEFENSE COSTS OR DAMAGES AFTER THE EXHAUSTION OF THE LIMITS OF INSURANCE.

II. Section II, Definitions of the General Terms and Conditions is amended as follows:

A. The following definitions are added:

Claims-made Relationship means that period of time between the effective date of the first claims-made policy between the Insurer and the **Named Insured** and the cancellation or nonrenewal of the last consecutive claims-made policy between the Insurer and the **Named Insured**, where there has been no gap in coverage, but does not include any period covered by extended reporting period coverage.

Termination of Coverage means, whether made by the Insurer or the **Named Insured** at any time:

1. cancellation or nonrenewal of a policy; or
2. decrease in limits, reduction of coverage, increased deductible or self-insured retention, new exclusion, or any other change in coverage less favorable to the **Insured**.

B. The definition of **Pollutants** is deleted and replaced with the following:

Pollutants means any solid, liquid, gaseous, or thermal irritant or contaminant, including smoke, vapor, soot, fumes, acids, alkalis, chemicals, or waste (including materials to be recycled, reconditioned, or reclaimed).

III. Section III, General Policy Exclusions of the General Terms and Conditions is amended as follows:

A. Exclusion 4, Illegal Profits/Deliberate Acts is retitled to Illegal Profits/Fraudulent Acts.

B. The following exclusion is added:

Nuclear

based upon or arising out of:

1. any nuclear reaction, radiation, or contamination;
2. any request, direction, or order that any **Insured** test for, monitor, clean up, remove, contain, treat, detoxify, neutralize, or in any way respond to or assess the effect of any nuclear reaction, radiation, or contamination, or any voluntary decision to do so;



3. or any actual or alleged property damage, bodily injury, sickness, disease, or death of any person, or financial loss to the **Insured Entity**, its security holders, or its creditors, resulting from any of the aforementioned matters.

However, this exclusion shall not apply to any **Non-Indemnifiable Loss** incurred by an **Insured Person**;

IV. Section IV, Limit of Liability/Retention/Indemnification/Advancement of Defense Costs of the General Terms and Conditions is amended as follows:

A. Subparagraph (d)i of Section 2, Retention is deleted.

B. The following paragraphs are added to Section 2, Retention:

- (e) Solely with respect to **Non-Indemnifiable Loss**, the individual retention for each director and officer is as set forth below:

Each **Insured Person** who is a director or officer of the **Insured Entity** and who has been found liable or who has been included in a settlement, must pay the applicable individual retention as set forth below. However, in the event that the total of such individual retention amounts exceeds the applicable aggregate retention amount set forth below, then such aggregate retention amount shall be divided by the total number of such directors and officers to determine the revised individual retention amount. However, in no event can the revised individual retention amount be less than 75% of the applicable individual retention amount set forth below.

Subject to Section 72.4 of Regulation 110 or as such law may be amended, the Minimum Schedule shall be applied as follows:

For corporations subject to the Banking Law ("B.L.") or the Business Corporation Law "B.C.L.":

MINIMUM RETENTION AMOUNTS

Type of Corporation	Individual Retention	Aggregate
(1) assets greater than \$20,000,000	\$5,000	\$50,000
(2) assets greater than \$10,000,000 Up to \$20,000,000	\$4,000	\$40,000
(3) assets greater than \$5,000,000 Up to \$10,000,000	\$3,000	\$30,000
(4) assets of \$5,000,000 or less	\$2,000	\$20,000

For corporations subject to the Cooperative Corporations Law, the Religious Corporations Law, or the Not-for-Profit Corporation Law ("N-PCL"):

MINIMUM RETENTION AMOUNTS

Type of Corporation	Individual Retention	Aggregate
(1) subject to Cooperative Corporations Law	\$100	\$1,000
(2) subject to Religious Corporations Law	\$100	\$1,000
(3) subject to Not-for-Profit Corporation Law	\$100	\$1,000

- (f) In accordance with New York State Laws B.C.L. section 726(a)(3), N-PCL section 726(a)(3), or B.L. Section 7023(a)(3), or as such laws may be amended, each of the directors and officers shall be a coinsurer of any **Non-Indemnifiable Loss** (in excess of any applicable retention amount) for the applicable minimum coinsurance percentage amount set forth below for the first \$1,000,000 of such **Non-Indemnifiable Loss**.



Subject to Section 72.4 of Regulation 110 or as such law may be amended, the Minimum Schedule shall be applied as follows:

For corporations subject to the B.L. or the B.C.L.:

Type of Corporation	Minimum Coinsurance %
(1) assets greater than \$20,000,000	0.5%
(2) assets greater than \$10,000,000 Up to \$20,000,000	0.4%
(3) assets greater than \$5,000,000 Up to \$10,000,000	0.3%
(4) assets of \$5,000,000 or less	0.2%

For corporations subject to the Cooperative Corporations Law, the Religious Corporations Law, or the N-PCL:

Type of Corporation	Minimum Coinsurance %
(1) subject to Cooperative Corporations Law	0.1%
(2) subject to Religious Corporations Law	0.1%
(3) subject to Not-for-Profit Corporation Law	0.1%
(4) subject to Cooperative Corporations Law	0.1%

- V. The following paragraph shall be added to Subsection 3, Duty to Defend in Section V, Cooperation/Consent/Duty to Defend/Allocation of the General Terms and Conditions:

With respect to the payment of **Defense Costs** in connection with a formal regulatory proceeding (civil, criminal, or administrative) against or formal investigation of an **Insured**, nothing in this Policy shall be construed to prevent the **Insured** from making a complaint to the appropriate New York Appellate Division or other body designated by the New York Appellate Division to investigate complaints in accordance with New York Judiciary Law Section 90, or to the appropriate disciplinary body in the state where the legal service is being provided.

- VI. Section VII, Notice and Interrelated Claim of the General Terms and Conditions is amended as follows:

- A. Subsection 1, Notice of Claim is deleted and replaced with the following:

Notice of Claim

The **Insureds** shall, as a condition precedent to the obligations of the Insurer under this Policy, give written notice to the Insurer or the Insurer's licensed agent of each **Claim** as soon as practicable after a **Responsible Person** first becomes aware of such **Claim**, but in no event later than:

- (a) ninety (90) days after the termination or expiration of the **Policy Period** or Coverage Part, provided that the Policy has not been renewed by the Insurer or extended by purchase of an **Extended Reporting Period**; or
- (b) the expiration of the **Extended Reporting Period**.

Failure to give such notice as soon as practicable shall not invalidate coverage of such **Claim**, unless the failure to provide timely notice has prejudiced the Insurer or unless the notice is provided after the expiration of the **Policy Period**, any renewal policy period, and the **Extended Reporting Period**. However, failure to give any notice required to be given by this Policy within the time prescribed therein shall not invalidate coverage for any **Claim** if it shall be shown not to have been reasonably possible to give such notice within the prescribed time and that notice was given as soon as was reasonably possible thereafter.

- B. Subsection 2, Notice of Circumstances is amended to add the phrase "the Insurer or its licensed agent" after the word "in writing".



- C. Paragraph (b) of Subsection 4, Interrelatedness is amended to add the phrase “or its licensed agent” after the word “Insurer”.
- D. Subsection 5, To Whom Notices are Sent is amended to add the phrase “or its licensed agent” after the word “Insurer”.

VII. Section VIII, Extended Reporting Period of the General Terms and Conditions is deleted and replaced with the following:

EXTENDED REPORTING PERIOD

1. The provisions of the **Extended Reporting Period** coverage will not apply, except for the sixty (60) day automatic **Extended Reporting Period** if the **Claims-Made Relationship** has been less than one year and this Policy has been terminated for nonpayment of premium or fraud.
2. In the event of **Termination of Coverage**, or if this Policy is renewed under terms and conditions less favorable to the **Named Insured** than those contained in the preceding Policy, a sixty (60) day automatic **Extended Reporting Period** will be granted to the **Named Insured** at no charge in which any **Claim** reported will be considered as having been made before the termination date of this Policy. Upon **Termination of Coverage**, the aggregate limit of liability for this automatic **Extended Reporting Period** shall be equal to the amount remaining in this Policy’s annual aggregate limit of liability.
3. Within thirty (30) days after termination, the Insurer will notify the **Named Insured**, in writing, of the automatic sixty (60) day **Extended Reporting Period**. The Insurer will also notify the **Named Insured** of the availability of, the premium for, and the importance of purchasing an additional **Extended Reporting Period**. If the **Claims-Made Relationship** has been in effect for one (1) year or more, and if this Policy has been terminated for nonpayment of premium, the Insurer shall not be required to provide a premium quotation unless requested by the **Insured**.
4. The **Named Insured** shall have the greater of sixty (60) days from the effective date of **Termination of Coverage** or thirty (30) days from the date of mailing or delivery of the advice of the availability to purchase additional **Extended Reporting Period** coverage, to submit written acceptance of the **Extended Reporting Period** coverage. The premium for such additional **Extended Reporting Period** must be paid promptly when due. The premium shall be fully earned at the inception of the **Extended Reporting Period**.
5. If the **Named Insured** has been placed in receivership, liquidation, or bankruptcy, or permanently ceases operations, then any one qualifying as an **Insured** has the right to an **Extended Reporting Period** coverage issued in the name of the **Named Insured** for the benefit of all **Insureds**. The request for such **Extended Reporting Period** coverage must be made within one hundred and twenty (120) days of the **Termination of Coverage**.
6. Only one such **Extended Reporting Period** coverage endorsement shall be issued and the **Extended Reporting Period** for such coverage shall be one year or three years. This period includes the automatic sixty (60) day period specified in Item 3 above.
7. The additional premium for the additional **Extended Reporting Period** shall be based upon the rates for such coverage in effect on the date this Policy was issued or last renewed and shall be for one (1) year at fifty percent (50%) of such premium; or three (3) years at 130% of such premium.
8. Upon **Termination of Coverage**:
 - a. any return premium due the **Named Insured** shall be credited toward the premium for the additional **Extended Reporting Period** coverage if the **Named Insured** elects such coverage.



- b. where premium is due to the Insurer for coverage during the **Claims-Made Relationship**, any monies received by the Insurer from the **Named Insured** as payment for the **Extended Reporting Period** coverage shall first be applied to such premium owing for this Policy.

9. Limits of liability for such additional **Extended Reporting Period** shall be:

- a. at least equal to one hundred percent (100%) of the Policy's annual aggregate limit of liability where a **Claims-Made Relationship** has continued for three years or more; or
- b. if the **Claims-Made Relationship** has continued for less than three (3) years, the limit of liability shall be at least equal to the greater of:
 - i. the amount of coverage remaining in such Policy's annual aggregate limit of liability; or
 - ii. fifty percent (50%) of such Policy's annual aggregate limit of liability.

10. **Extended Reporting Period** coverage ends at the same time as the last installment period for which premium has been paid or the **Named Insured** fails to pay the premium when due for the next installment period.

11. For such **Extended Reporting Period**, coverage otherwise afforded by this Policy shall apply, subject to all terms and conditions, provided that such coverage will extend only to **Claims** that are: (a) first made during the **Extended Reporting Period**; (b) reported in accordance with paragraph 1, Notice of Claim in Section VII, Notice and Interrelated Claims; and (c) for **Wrongful Acts** taking place before the effective date of such cancellation or termination.

12. Unless any of the prior terms and conditions apply, any **Extended Reporting Period** shall become part of the **Policy Period**, extending such **Policy Period** to the expiration of the time period stated in Item 5 of the Declarations.

VIII. Section IX, Termination or Cancellation of the General Terms and Conditions is deleted and replaced with the following provision:

IX. CANCELLATION/NON-RENEWAL

1. **Cancellation**

- (a) This Policy may be canceled by the **Named Insured** by surrendering it to the Insurer or any of its authorized agents. The **Named Insured** may also cancel this Policy by written notice to the Insurer or the Insurer's licensed agent stating at what future date cancellation is to be effective.
- (b) If this Policy has been in effect for sixty (60) days or less, this Policy may be canceled by the Insurer by mailing or delivering to the **Named Insured** written notice stating the reason for cancellation at the mailing address shown on the Declarations, and to its authorized agent or broker at least:
 - i. twenty (20) days before the effective date of cancellation if this Policy is canceled for any reason not included in paragraph ii. below;
 - ii. fifteen (15) days before the effective date of cancellation if this Policy is canceled for any of the following reasons:
 - a. Non-payment of premium provided; however, a notice of cancellation on this ground shall inform the **Insured** of the amount due;



- b. a determination by the New York State Superintendent of Insurance that continuation of the present premium volume of the Insurer would jeopardize the Insurer's solvency or be hazardous to the interest of the Insurer's policyholders, creditors or the public; or
 - c. a determination by such Superintendent that the continuation of this Policy would violate, or would place the Insurer in violation of, any provision of the New York Insurance Code.
- (c) If this Policy has been in effect for more than sixty (60) days, or if this Policy is a renewal or continuation of a policy issued by the Insurer, this Policy may be canceled by the Insurer only for any reasons listed in paragraph (b)ii above provided a written notice stating the reason for cancellation is mailed or delivered to the **Named Insured** at the address shown in the Declarations, and its authorized agent or broker at least fifteen (15) days before the effective date of cancellation.
- (d) Notice of cancellation will state the effective date of cancellation. The **Policy Period** will end on this date. If notice is mailed, proof of mailing will be sufficient proof of notice.
- (e) If the **Named Insured** cancels, earned premium will be computed in accordance with the customary short rate table and procedure. If the Insurer cancels, earned premium shall be computed pro-rata. However, when the premium is advanced under a premium finance agreement, the cancellation refund will be pro rata. Under such financed policies, the Insurer will be entitled to retain a minimum earned premium of ten percent (10%) of the total policy premium or \$60, whichever is greater. Premium adjustment may be made either at the time cancellation is effected or as soon as practicable after cancellation becomes effective, but payment or tender of unearned premium is not a condition of cancellation.
- (f) If one of the reasons for cancellation set forth in paragraph b.ii. exists, the Insurer may cancel this entire Policy, even if the reason for cancellation pertains only to a new coverage or endorsement initially effective subsequent to the original issuance of this Policy.

2. **Non-Renewal/Conditional Non-Renewal**

- (a) If the Insurer elects not to renew this Policy, the Insurer shall send notice as provided in paragraph (c) below along with the reason for nonrenewal.
- (b) If the Insurer conditions renewal of this Policy upon:
- i. change of limits;
 - ii. change in type of coverage;
 - iii. reduction of coverage;
 - iv. increased retention;
 - v. addition of exclusion;
 - vi. increased premiums in excess of ten percent (10%), exclusive of any premium increased due to and commensurate with insured value added or increased exposure units, or as a result of experience rating, loss rating, retrospective rating, or audit, the Insurer shall send notice as provided in paragraph (c)ii below.
- (c) Notice of nonrenewal and conditional renewal will be provided as follows:



- i. If the Insurer decides not to renew this Policy or to conditionally renew this Policy as provided in paragraphs (a) and (b) above, the Insurer shall mail or deliver written notice to the **Named Insured** at least sixty (60) days, but not more than one hundred twenty (120) days, before the expiration date or, if this is a continuous Policy, the anniversary date.
 - ii. Notice will be mailed or delivered to the **Named Insured** at the address shown in the Declarations and to its authorized agent or broker. If notice is mailed, proof of mailing will be sufficient proof of notice.
 - iii. The Insurer will not send the **Named Insured** notice of non-renewal or conditional renewal if the **Named Insured** or its authorized agent or broker or another insurer of the **Named Insured** mails or delivers notice that this Policy has been replaced or no longer desired.
- (d) If the Insurer violates any of the provisions of this subsection by sending the **Named Insured** an incomplete or late conditional notice:
- i. Coverage will remain in effect at the same terms and conditions of this Policy at the lower of the current rates or the prior period's rates until sixty (60) days after such notice is mailed or delivered, unless the **Named Insured**, during this sixty (60) day period, has replaced the coverage or elects to cancel.
 - ii. On or after the expiration date of this Policy, coverage will remain in effect at the same terms and conditions of this Policy for another policy period, at the lower of the current rates or the prior period's rates, unless the **Named Insured**, during the additional policy period, has replaced the coverage or elects to cancel.

- IX. Subsection 1 of Section XVI, No Action Against Insurer of the General Terms and Conditions is deleted and replaced with the following:

No action shall be taken against the Insurer unless, as a condition precedent, there shall have been full compliance with all the provisions of this Policy nor until the amount of an **Insured's** obligation to pay shall have been determined either by judgment against such **Insured** or by written agreement of such **Insured**, the claimant, and the Insurer.

- X. With respect to any Coverage Part that is purchased, the definition of **Loss** is amended to add the following:

Loss shall also include, if a judgment is entered against the **Insured** and the principal amount of which is within the applicable Limit of Liability, any costs, disbursements, and post-judgment interest that accrues after entry of the judgment and before the Insurer has paid, offered to pay, or deposited in court that part of the judgment within the applicable Limit of Liability. These interest payments shall be in excess of the applicable Limit of Liability.

All other terms and conditions of the Policy remain unchanged.

This endorsement, which forms a part of and is for attachment to the Policy issued by the designated Insurers, takes effect on the effective date of said Policy at the hour stated in said Policy, unless another effective date is shown below, and expires concurrently with said Policy.



AMEND DEFINITION OF RESPONSIBLE PERSON ENDORSEMENT

In consideration of the premium, it is understood and agreed that the Policy is amended as follows:

The definition of **Responsible Person** as set forth in Section II, Definitions of the General Terms and Conditions is deleted and replaced with the following:

Responsible Person means the Chief Executive Officer or Chief Financial Officer.

All other terms and conditions of the Policy remain unchanged.

This endorsement, which forms a part of and is for attachment to the Policy issued by the designated Insurers, takes effect on the effective date of said Policy at the hour stated in said Policy, unless another effective date is shown below, and expires concurrently with said Policy.



CAP ON LOSSES FROM CERTIFIED ACTS OF TERRORISM ENDORSEMENT

It is understood and agreed as follows:

Whenever used in this endorsement, 1) "we" means the insurer listed on Declarations or the Certificate of Insurance, as applicable; and 2) "you" means the first person or entity named on the Declarations or the Certificate of Insurance, as applicable.

A. Cap on Certified Terrorism Losses

"Certified act of terrorism" means an act that is certified by the Secretary of the Treasury, in consultation with the Secretary of Homeland Security and the Attorney General of the United States, to be an act of terrorism pursuant to the Terrorism Risk Insurance Act, as extended and reauthorized (the "Act"). The criteria contained in the Act for a "certified act of terrorism" include the following:

1. The act resulted in insured losses in excess of \$5 million in the aggregate, attributable to all types of insurance subject to the Terrorism Risk Insurance Act; and
2. The act is a violent act or an act that is dangerous to human life, property or infrastructure and is committed by an individual or individuals as part of an effort to coerce the civilian population of the United States or to influence the policy or affect the conduct of the United States Government by coercion.

If aggregate insured losses attributable to terrorist acts certified under the Act exceed \$100 billion in a calendar year (January 1 through December 31) and we have met our insurer deductible under the Act, we shall not be liable for the payment of any portion of the amount of such losses that exceeds \$100 billion, and in such case insured losses up to that amount are subject to pro rata allocation in accordance with procedures established by the Secretary of the Treasury.

B. Application of Exclusions

The terms and limitations of any terrorism exclusion, or the inapplicability or omission of a terrorism exclusion, do not serve to create coverage for any loss which would otherwise be excluded under this Policy, such as losses excluded by the Nuclear Hazard Exclusion or the War And Military Action Exclusion.

All other terms and conditions of the Policy remain unchanged.

This endorsement, which forms a part of and is for attachment to the Policy issued by the designated Insurers, takes effect on the effective date of said Policy at the hour stated in said Policy, unless another effective date is shown below, and expires concurrently with said Policy.



IMPORTANT INFORMATION

NOTICE - OFFER OF TERRORISM COVERAGE;

DISCLOSURE OF PREMIUM

THIS NOTICE DOES NOT FORM A PART OF THE POLICY, GRANT ANY COVERAGE OR CHANGE THE TERMS AND CONDITIONS OF ANY COVERAGE UNDER THE POLICY.

As used herein, 1) "we" means the insurer listed on the Declarations or the Certificate of Insurance, as applicable; and 2) "you" means the first person or entity named on the Declarations or the Certificate of Insurance, as applicable. You are hereby notified that under the Terrorism Risk Insurance Act, as extended and reauthorized ("Act"), you have a right to purchase insurance coverage of losses arising out of acts of terrorism, as defined in Section 102(1) of the Act, subject to all applicable policy provisions. The Terrorism Risk Insurance Act established a federal program within the Department of the Treasury, under which the federal government shares, with the insurance industry, the risk of loss from future terrorist attacks.

This Notice is designed to alert you to coverage restrictions and to certain terrorism provisions in the policy. If there is any conflict between this Notice and the policy (including its endorsements), the provisions of the policy (including its endorsements) apply.

CHANGE IN THE DEFINITION OF A CERTIFIED ACT OF TERRORISM

The Act applies when the Secretary of the Treasury certifies that an event meets the definition of an act of terrorism. Originally, the Act provided that to be certified, an act of terrorism must cause losses of at least five million dollars and must have been committed by an individual or individuals acting on behalf of any foreign person or foreign interest to coerce the government or population of the United States. However, the 2007 re-authorization of the Act removed the requirement that the act of terrorism must be committed by or on behalf of a foreign interest, and now certified acts of terrorism may encompass, for example, a terrorist act committed against the United States government by a United States citizen, when the act is determined by the federal government to be "a certified act of terrorism."

In accordance with the Act, we are required to offer you the ability to purchase coverage for losses resulting from an act of terrorism that is certified under the federal program. The other provisions of this policy, including nuclear, war or military action exclusions, will still apply to such an act.

DISCLOSURE OF FEDERAL PARTICIPATION IN PAYMENT OF TERRORISM LOSSES

The Department of the Treasury will pay a share of terrorism losses insured under the federal program. Beginning in 2020, the federal share equals 80% of that portion of the amount of such insured losses that exceeds the applicable insurer retention.

LIMITATION ON PAYMENT OF TERRORISM LOSSES

If aggregate insured losses attributable to terrorist acts certified under the Terrorism Risk Insurance Act exceed \$100 billion in a calendar year (January 1 through December 31), the Treasury shall not make any payment for any portion of the amount of such losses that exceeds \$100 billion.

Further, this coverage is subject to a limit on our liability pursuant to the federal law where, if aggregate insured losses attributable to terrorist acts certified under the Act exceed \$100 billion in a calendar year (January 1 through December 31) and we have met our insurer deductible under the Act, we shall not be liable for the payment of any portion of the amount of such losses that exceeds \$100 billion. In such case, insured losses up to that amount are subject to pro rata allocation in accordance with procedures established by the Secretary of the Treasury.

CONFIRMATION OF ACCEPTANCE OF COVERAGE



Policy Holder Notice – Country Wide

In accordance with the Act, we offered you coverage for losses resulting from an act of terrorism that is certified under the federal program. This notice confirms that you have chosen to accept our offer of coverage for certified acts of terrorism. The policy's other provisions, including nuclear, war or military action exclusions, will still apply to such an act. The premium charge for terrorism coverage, if any, is shown separately on the Declarations or the Certificate of Insurance, as applicable.



AMEND ADVANCEMENT OF DEFENSE COSTS ENDORSEMENT
(Advancement No Later Than 60 Days)

In consideration of the premium, it is understood and agreed that Subsection 3, Presumptive Indemnification and Advancement of Defense Costs in Section IV, Limit of Liability/ Retention/Indemnification/Advancement of Defense Costs, is amended by deleting and replacing the first sentence of the second paragraph with the following:

The Insurer shall advance **Defense Costs** on a current basis, but no later than sixty (60) days after receipt and review of the legal bills and any supporting documentation reasonably requested by the Insurer.

All other terms and conditions of the Policy remain unchanged.

This endorsement, which forms a part of and is for attachment to the Policy issued by the designated Insurers, takes effect on the effective date of said Policy at the hour stated in said Policy, unless another effective date is shown below, and expires concurrently with said Policy.



DELETE UNREGISTERED SECURITIES EXCLUSION ENDORSEMENT

In consideration of the premium, it is understood and agreed that the Policy is amended as follows:

The Fund Management and Professional Liability Coverage Part, Section III, Special Exclusions, exclusion entitled **Unregistered Securities** is deleted.

All other terms and conditions of the Policy remain unchanged.

This endorsement, which forms a part of and is for attachment to the Policy issued by the designated Insurers, takes effect on the effective date of said Policy at the hour stated in said Policy, unless another effective date is shown below, and expires concurrently with said Policy.



PRIVATE COMPANY ENDORSEMENT
(With Defense Costs Carveback for ERISA Violations and Unfair Competition Claims)

In consideration of the premium, it is agreed that solely with respect to an **Insured Entity** that is a private company, the Policy is amended as follows:

- I. Insuring Agreement 3, Insured Entity Securities Liability of the Investment Adviser Management Liability Coverage Part, is deleted and replaced with the following:

3. **Insured Entity Liability**

The Insurer shall pay **Loss** on behalf of an **Insured Entity** resulting from a **Claim** first made against such **Insured Entity** during the **Policy Period**.

- II. Section II, Special Definitions of the Investment Adviser Management Liability Coverage Part, is amended by deleting and replacing the definition of **Wrongful Act** with the following:

Wrongful Act means any actual or alleged error, misstatement, misleading statement, act, omission, neglect, or breach of duty committed or attempted, or allegedly committed or attempted by:

1. an **Insured Person** in (a) his/her capacity as such; or (b) any matter claimed against such **Insured Person** solely by reason of his/her status as such; or
2. an **Insured Entity**.

- III. Section III, Special Exclusions of the Investment Adviser Management Liability Coverage Part, is amended by adding the following Exclusions:

- **Publishing Liability**

for any actual or alleged plagiarism, misappropriation, infringement, or violation of copyright, patent, trademark, trade secret, or any other intellectual property rights, except that this exclusion shall not apply to any **Insured Person**.

- **Securities**

based upon or arising out of, or in any way involving:

1. the public offer, sale, offer to sell, solicitation, or distribution of securities issued by an **Insured Entity** or any **Subsidiary**; or
2. the actual or alleged violation of any federal, state, local, statutory, regulatory or common law relating to securities or any rules or regulations promulgated thereunder, if such violation actually or allegedly occurred after a transaction described in paragraph 1 above.

Provided, however, if within thirty (30) days prior to the effective date of any public offering of securities (whether or not exempted by section 3(b) of the Securities Act of 1933) the **Named Insured** provides written notice of such public offering to the Insurer together with all information the Insurer may reasonably require, then the Insurer may in its sole discretion, agree in writing to provide coverage for such public offerings, subject to additional terms and conditions and payment of additional premium.

- The Insurer shall not be liable for **Loss**, other than **Defense Costs**, under this Policy in connection with any **Claim** for any actual or alleged violation of any law by the **Insured Entity**, whether statutory, regulatory, or common law, with respect to any of the following activities: antitrust, business competition, unfair trade practices, or tortious interference in another's business or contractual relationships; provided that this exclusion shall not apply any **Insured Person**.



IV. Section III, Exclusions of the General Terms and Conditions is amended by deleting and replacing Exclusion 3, ERISA/COBRA with the following:

The Insurer shall not be liable to pay for **Loss**, other than **Defense Costs**, under this Policy in connection with any **Claim** for any actual or alleged violation of the responsibilities, obligations, or duties imposed upon fiduciaries by **ERISA, COBRA or any Similar Act** in connection with the **Insured Entity's** pension, employee benefit, or welfare plans.

All other terms and conditions of the Policy remain unchanged.

This endorsement, which forms a part of and is for attachment to the Policy issued by the designated Insurers, takes effect on the effective date of said Policy at the hour stated in said Policy, unless another effective date is shown below, and expires concurrently with said Policy.



**AMEND NOTICE OF CLAIM ENDORSEMENT
(Material Prejudice Required)**

In consideration of the premium paid, it is understood and agreed that the Policy is amended as follows:

Section VII, Notice and Interrelated Claims, Subsection 1, Notice of Claim of the General Terms and Conditions is deleted and replaced with the following:

1. **Notice of Claim**

The **Insureds** shall, as a condition precedent to the obligations of the Insurer under this Policy, give written notice to the Insurer of each **Claim** as soon as practicable after a **Responsible Person** first becomes aware of such **Claim**, but in no event later than:

- (a) ninety (90) days after the termination or expiration of the **Policy Period** or Coverage Part, provided that the Policy has not been renewed by the Insurer or extended by purchase of an **Extended Reporting Period**; or
- (b) the expiration of the **Extended Reporting Period**,

provided, however, failure to give timely notice as described above shall not invalidate coverage of such **Claim** unless the Insurer demonstrates that such failure to provide timely notice has materially prejudiced the Insurer.

Unless otherwise provided within the Policy, this endorsement shall not afford coverage of any pre-tender **Defense Costs**.

All other terms and conditions of the Policy remain unchanged.

This endorsement, which forms a part of and is for attachment to the Policy issued by the designated Insurers, takes effect on the effective date of said Policy at the hour stated in said Policy, unless another effective date is shown below, and expires concurrently with said Policy.



**AMEND BODILY INJURY EXCLUSION ENDORSEMENT
(Carveback for Shareholder Records)**

In consideration of the premium, it is understood and agreed that the Policy is amended as follows:

The Bodily Injury/Property Damage Exclusion found in Section III, Special Exclusions in Investment Adviser Professional Liability Coverage Part And Fund Management And Professional Liability Coverage Part is amended by adding the following:

This exclusion shall not apply to the damage to, destruction of, loss of, or loss of use of shareholder records that are in the custody or control of the **Insured**.

All other terms and conditions of the Policy remain unchanged.

This endorsement, which forms a part of and is for attachment to the Policy issued by the designated Insurers, takes effect on the effective date of said Policy at the hour stated in said Policy, unless another effective date is shown below, and expires concurrently with said Policy.



AMEND NON-INDEMNIFIABLE LOSS AND PRESUMPTIVE INDEMNIFICATION ENDORSEMENT

In consideration of the premium, it is understood and agreed that the Policy is amended as follows:

- I. The definition of **Non-Indemnifiable Loss** in Section II, Definitions of the General Terms and Conditions is amended by deleting and replacing the definition with the following:

Non-Indemnifiable Loss means any **Loss** incurred by an **Insured Person** that an **Insured Entity** fails or refuses to pay, advance, or indemnify:

1. due to **Financial Insolvency**; or
2. because such indemnification is not permitted pursuant to law or **Organizational Document**.

- II. Subsection 3, Presumptive Indemnification and Advancement of Defense Costs in Section IV, Limit of Liability/Retention/Indemnification/Advancement of Defense Costs of the General Terms and Conditions is amended by deleting and replacing the first sentence with the following:

It is agreed that each **Insured Entity** shall fulfill its indemnification obligations to each **Insured Person** to the fullest extent permitted by **Organizational Document**.

All other terms and conditions of the Policy remain unchanged.

This endorsement, which forms a part of and is for attachment to the Policy issued by the designated Insurers, takes effect on the effective date of said Policy at the hour stated in said Policy, unless another effective date is shown below, and expires concurrently with said Policy.



AMEND CONSENT ENDORSEMENT

In consideration of the premium, it is understood and agreed that Section V, Cooperation/Consent/ Duty to Defend/Allocation of the General Terms and Conditions is amended by deleting and replacing Subsection 2, Insurer's Consent with the following:

Insurer's Consent

Subject to the following paragraph, the **Insureds** shall not agree to any settlement, make any offer of settlement, stipulate to any judgment, incur any **Defense Costs, Loss, Shareholder Derivative Investigative Costs, Extradition Costs, Facilitation Costs, Non-Party Witness Fees**, or any similar cost or expense, or admit any liability or assume any contractual obligation, without the Insurer's prior written consent, such consent not to be unreasonably withheld.

Notwithstanding the above:

- (a) The **Insureds** may incur up to fifty percent (50%) of the applicable Retention in **Defense Costs** without the Insurer's prior written consent; provided that any **Defense Costs** in excess of this amount will be subject to the Insurer's written consent.
- (b) If the **Insureds** are able to settle all **Claims**, including all **Interrelated Wrongful Acts**, for an aggregate amount, including **Defense Costs**, not exceeding the applicable Retention, the Insurer's consent shall not be required for the settlement of such **Claims**.

All other terms and conditions of the Policy remain unchanged.

This endorsement, which forms a part of and is for attachment to the Policy issued by the designated Insurers, takes effect on the effective date of said Policy at the hour stated in said Policy, unless another effective date is shown below, and expires concurrently with said Policy.



ASSET PROTECTION ENDORSEMENT

In consideration of the premium, it is understood and agreed that solely with respect to the Investment Adviser Professional Liability Coverage Part And Fund Management And Professional Liability Coverage Part the Policy is amended as follows:

- I. Section I, Insuring Agreements is amended by adding the following Supplementary Coverage:

Asset Protection Expenses

The Insurer shall pay on behalf of an **Executive** any **Asset Protection Expenses** (subject to the sublimit of liability below) incurred by such **Executive** in response to an **Asset Protection Order** first imposed upon such **Executive** during the **Policy Period**.

The amount \$5,000,000 is the Insurer's maximum limit of liability for all **Asset Protection Expenses** for all **Asset Protection Orders** regardless of the number of **Executives** or **Asset Protection Orders**. This sublimit of liability is part of and not in addition to the aggregate Limit of Liability stated in Item 6. of the Declarations.

The Insurer reserves all rights to recoupment of such **Asset Protection Expenses** from the **Executive** in the event that a final non-appealable adjudication establishes that the **Executive** committed a deliberate fraudulent or deliberate criminal act, and such act gave rise to the **Asset Protection Order**.

- II. Section II, Special Definitions is amended as follows:

- A. The following new definitions are added:

Asset Protection Expenses means the reasonable and necessary fees, costs, and expenses consented to by the Insurer and incurred by or on behalf of any **Executive** in: (i) opposing; or (ii) seeking to obtain a discharge or revocation, of an **Asset Protection Order**.

Asset Protection Order means any order issued by a law enforcement agency or a regulatory authority against an **Executive** in such capacity to seize or enjoin the personal assets or real property of such **Executive**.

- B. The definition of **Loss** is amended as follows:

Loss also includes **Asset Protection Expenses**.

- III. Paragraph 3, Request for Specified Costs or Fees in Section VII, Notice and Interrelated Claims of the General Terms and Conditions is amended by adding the following:

In the event that an **Executive** seeks coverage for **Asset Protection Expenses**, the **Executive** must submit a written notice to the Insurer as soon as practicable, but in no event later than sixty (60) days after the end of the **Policy Period**. Such written notice should include a copy of the **Asset Protection Order**, when such order was first received and the nature of the expenses seeking coverage under this Policy. Any **Claim** otherwise covered pursuant to this Policy that is subsequently made and that arises out of a noticed **Asset Protection Order** shall be deemed to have been first made during the **Policy Period** in which such written notice was received by the Insurer.

All other terms and conditions of the Policy remain unchanged.

This endorsement, which forms a part of and is for attachment to the Policy issued by the designated Insurers, takes effect on the effective date of said Policy at the hour stated in said Policy, unless another effective date is shown below, and expires concurrently with said Policy.



AMEND BODILY INJURY EXCLUSION ENDORSEMENT
(Corporate Manslaughter Defense Costs, Mental Anguish and Emotional Distress and Records Carvebacks)

In consideration of the premium, the Bodily Injury/Property Damage Exclusion found in Section III, Special Exclusions in the Fund Management and Professional Liability Coverage Part is deleted and replaced with the following:

Bodily Injury/Property Damage

for any actual or alleged bodily injury (including death), sickness, violation of any right of privacy, disease, libel, slander or defamation of any person, or damage to or destruction of any tangible property, including loss of use, provided that this exclusion shall not apply to:

1. any actual or alleged libel, slander, oral or written publication of defamatory or disparaging material solely arising out of the rendering of, or failing to render **Professional Services**;
2. **Securities Claim**;
3. **Non-Indemnifiable Loss**;
4. the damage to, destruction of, loss of, or loss of use of:
 - a. client records that are solely in the possession of the **Insured**; or
 - b. shareholder records that are in the custody or control of the **Insured**; or
5. **Defense Costs** incurred by any **Executive** in connection with a **Claim** based upon or arising from an actual or alleged violation of the United Kingdom Corporate Manslaughter and Corporate Homicide Act of 2007, or any such equivalent corporate manslaughter statute.

All other terms and conditions of the Policy remain unchanged.

This endorsement, which forms a part of and is for attachment to the Policy issued by the designated Insurers, takes effect on the effective date of said Policy at the hour stated in said Policy, unless another effective date is shown below, and expires concurrently with said Policy.



**AMEND OTHER INSURANCE
(Delete Stacking Provision)**

In consideration of the premium, Section XII, Other Insurance, paragraph 3 set forth in the General Terms and Conditions is deleted and replaced with the following:

3. Any coverage afforded by this Policy for a **Claim** against an **Executive** serving in his/her capacity as such for an **Outside Entity** shall apply specifically as excess of any insurance and/or indemnification available to such **Executive** from such **Outside Entity**.

All other terms and conditions of the Policy remain unchanged.

This endorsement, which forms a part of and is for attachment to the Policy issued by the designated Insurers, takes effect on the effective date of said Policy at the hour stated in said Policy, unless another effective date is shown below, and expires concurrently with said Policy.



MOCK REGULATORY COMPLIANCE EXAMINATION CONTRIBUTION ENDORSEMENT
(Approved Compliance Consulting Firms)

In consideration of the premium, the General Terms and Conditions of the Policy is amended to include the following new section:

MOCK REGULATORY COMPLIANCE EXAMINATION CONTRIBUTION

1. Subject to paragraph 2. below, the Insurer will reimburse the **Named Insured** for the cost of mock regulatory compliance examinations of the **Named Insured** conducted during the **Policy Period**, by any of the following Approved Compliance Consulting Firms ("Approved Compliance Consulting Firm"):
 - (a) ACA Compliance Group;
 - (b) NRS National Regulatory Services;
 - (c) Duff & Phelps;
 - (d) Vigilant Compliance;
 - (e) Constellation Advisors;
 - (f) SEC Compliance Consultants ("SEC3");
 - (g) Greyline Partners; and
 - (h) HighCamp Compliance

Any mock regulatory compliance examination performed by an Approved Compliance Consulting Firm does not require prior written consent of the Insurer. Any mock regulatory compliance examination performed by a compliance consulting firm who is not an Approved Compliance Consulting Firm requires prior written consent of the Insurer.

2. The Insurer's maximum reimbursement payment for each mock regulatory compliance examination shall be fifty percent (50%) of the cost of such examination or ten percent (10%) of the annual premium charged for this Policy, whichever is less. The Insurer's maximum reimbursement payment total for all mock regulatory compliance examinations in the aggregate shall be \$25,000.
3. The provisions of this section shall apply to one (1) mock regulatory compliance examination per twelve (12) month period.
4. This section shall not apply to any extended reporting period of the **Policy Period**.

All other terms and conditions of the Policy remain unchanged.

This endorsement, which forms a part of and is for attachment to the Policy issued by the designated Insurers, takes effect on the effective date of said Policy at the hour stated in said Policy, unless another effective date is shown below, and expires concurrently with said Policy.



AMEND SUBROGATION ENDORSEMENT

In consideration of the premium, solely with respect to the following Coverage Parts, General Terms and Conditions , Section VI Subrogation of the General Terms and Conditions is amended by adding the following:

Any amount of recovery made by the Insurer, less any costs incurred by the Insurer to obtain such recovery, shall be applied to the applicable Coverage Part limit of Liability. The Insurer shall not subrogate against any **Professional Services Client** or any **Insured**.

All other terms and conditions of the Policy remain unchanged.

This endorsement, which forms a part of and is for attachment to the Policy issued by the designated Insurers, takes effect on the effective date of said Policy at the hour stated in said Policy, unless another effective date is shown below, and expires concurrently with said Policy.



AMEND DEFINITION OF FINANCIAL INSOLVENCY ENDORSEMENT
(Add Bondholders Committee)

In consideration of the premium, Paragraph 1. of the definition of **Financial Insolvency** set forth in Section II, Definitions of the General Terms and Conditions is deleted and replaced with the following:

1. the appointment of a receiver, conservator, liquidator, trustee, rehabilitator, or similar official, or creditors' or bondholders' committee to take control of, supervise, manage, or liquidate an **Insured Entity** or **Outside Entity**; or

All other terms and conditions of the Policy remain unchanged.

This endorsement, which forms a part of and is for attachment to the Policy issued by the designated Insurers, takes effect on the effective date of said Policy at the hour stated in said Policy, unless another effective date is shown below, and expires concurrently with said Policy.



STATE AMENDATORY INCONSISTENCY ENDORSEMENT

In consideration of the premium paid for this Policy, it is understood and agreed that in the event that there is an inconsistency between the terms and conditions of this Policy and any state amendatory endorsement, the Insurer will apply the terms and conditions that are most favorable to the **Insureds**, provided such terms and conditions comply with the law under which this Policy is construed.

All other terms and conditions of the Policy remain unchanged.

This endorsement, which forms a part of and is for attachment to the Policy issued by the designated Insurers, takes effect on the effective date of said Policy at the hour stated in said Policy, unless another effective date is shown below, and expires concurrently with said Policy.



AMEND CANCELLATION PROVISION ENDORSEMENT
(Variable Number of Days' Notice for The Insurer to Cancel)

In consideration of the premium, paragraph 2 in Section IX, Termination or Cancellation is deleted and replaced with the following:

2. termination by the Insurer only for nonpayment of premium, in which case the Insurer shall provide to the **Named Insured** written notice of such termination which shall be effective thirty (30) days after receipt by the **Named Insured**; or

All other terms and conditions of the Policy remain unchanged.

This endorsement, which forms a part of and is for attachment to the Policy issued by the designated Insurers, takes effect on the effective date of said Policy at the hour stated in said Policy, unless another effective date is shown below, and expires concurrently with said Policy.



AMEND PRIORITY OF PAYMENTS ENDORSEMENT
(Independent Directors, Insured Persons, Reimbursement, then Entity)

In consideration of the premium, it is understood and agreed that the Policy is amended as follows:

Section XV, Priority of Payments of the General Terms and Conditions is deleted and replaced with the following:

PRIORITY OF PAYMENTS

Any coverage afforded by this Policy is principally intended to benefit the **Insured Persons**.

In the event that **Non-Indemnifiable Loss** and any other **Loss** are concurrently due, then the Insurer shall pay such **Non-Indemnifiable Loss** in the following priority:

1. the Insurer shall pay first any **Non-Indemnifiable Loss** due under any Coverage Part of this Policy for **Independent Directors** up to the remaining Limit of Liability available under the Policy; then
2. only after payment of **Non-Indemnifiable Loss** has been made pursuant to paragraph 1 above, with respect to whatever remaining amount of the Limit of Liability is available after such payment, the Insurer shall pay the amount of **Non-Indemnifiable Loss** due under any Coverage Part of this Policy for all other **Insured Persons**, up to the remaining Limit of Liability available under this Policy.
3. only after payment in accordance with paragraphs 1 and 2 above, the Insurer shall then pay **Loss** on behalf of an **Insured Entity**, for which an **Insured Entity** has indemnified an **Insured Person**;
4. only after payment of **Loss** has been made pursuant to paragraphs 1, 2, and 3 above, all other **Loss** shall be paid or withheld at the written request of the chief financial officer of the **Named Insured** for all other **Loss** for which coverage is provided or may be available under this Policy.
5. Notwithstanding anything to the contrary, in the event the Insurer pays **Loss** under paragraph 4. above, and payment of **Loss** is thereafter due under paragraphs 1. – 3., the Insurer shall immediately pay all **Loss** under paragraphs 1. – 3. before any further **Loss** is paid under paragraph 4.

All other terms and conditions of the Policy remain unchanged.

This endorsement, which forms a part of and is for attachment to the Policy issued by the designated Insurers, takes effect on the effective date of said Policy at the hour stated in said Policy, unless another effective date is shown below, and expires concurrently with said Policy.



AMEND DEFINITION OF DEFENSE COSTS
(Usual Hourly Rates; Document Production; E-Discovery Fees; and Pre-Claim Expenses)

In consideration of the premium, the definition of **Defense Costs** set forth in Section II, Definitions of the General Terms and Conditions is deleted and replaced with the following:

- I. **Defense Costs** mean reasonable fees, costs, and expenses: (i) of defense counsel selected by the **Insureds** at defense counsel's usual hourly rates (and periodic increases in such rates), including fees, costs and expenses incurred by defense counsel in providing reports or updates of a **Claim** to the **Insurer**; (ii) of any experts, accountants, consultants, and vendors (including without limitation, document production and other e-discovery fees), incurred by an **Insured** in the investigation, defense, or appeal of any **Claim**, including the premium for appeal, attachment, or similar bonds arising out of a covered judgment.

Defense Costs will not include: **Shareholder Derivative Demand Investigation Costs, Non-Party Witness Fees**, or salaries, wages, fees, overhead, or benefit expenses of any **Insured Person**.

- II. Notwithstanding anything to the contrary in this Policy, **Defense Costs** will also include "Pre-Claim Expenses", provided that any payment of Pre-Claim Expenses is conditioned upon the following:

1. the **Insured** provides written notice of circumstances pursuant to paragraph 2, Notice of Circumstance, Section VII, Notice and Interrelated Claims, which the Insurer has accepted (the "Noticed Matter");
2. the **Insured** provides written notice of a **Claim**, which arises subsequent to the Noticed Matter, and arises from, is based upon, or directly results from the same or similar facts, transactions, or events described in the Noticed Matter ("Subsequent Claim");
3. the Insurer has accepted such notice of the Subsequent Claim;
4. the **Insured** is in compliance with all other terms and conditions of the Policy; and
5. any Pre-Claim Expenses shall first be applied towards the applicable Retention for the Subsequent Claim.

- III. For purposes of coverage afforded by this endorsement, the following terms and conditions shall apply:

"Pre-Claim Expenses" shall mean reasonable and necessary fees, costs, and expenses (other than salaries, wages, fees, overhead, or benefit expenses of any **Insured Person**) that have been: (i) consented to by the Insurer, such consent not to be unreasonably withheld; and (ii) incurred by an **Insured** in the defense of the Noticed Matter, on or after the date the notice of circumstances has been accepted and prior to, or on, the date the Noticed Matter became a **Claim**.

Pre-Claim Expenses shall not include any fees, costs, or expenses incurred by the **Insured**: (i) in connection with any routine examinations, routine inspections, "sweep" examinations, general requests for information, or any other similar reviews, inquiries, or investigations; or (ii) as a result of any Foreign Corrupt Practices Act investigation, examination, or request.

- IV. The Insurer has the sole discretion with respect to determining the reasonableness, necessity, and allocation of the Pre-Claim Expenses (including the right to apply any Subsequent Claim exclusions to the determination and allocation of Pre-Claim Expenses).

All other terms and conditions of the Policy remain unchanged.

This endorsement, which forms a part of and is for attachment to the Policy issued by the designated Insurers, takes effect on the effective date of said Policy at the hour stated in said Policy, unless another effective date is shown below, and expires concurrently with said Policy.



AMEND COOPERATION PROVISION ENDORSEMENT
(Non-Waiver of Privilege, Fifth Amendment Rights or Reveal Confidential Information)

In consideration of the premium, Section V, Cooperation/Consent/Duty to Defend/Allocation, Subsection 1, Cooperation set forth in the General Terms and Conditions is deleted and replaced with the following:

Each **Insured** shall, as a condition precedent to obtaining coverage under the Policy, give the Insurer full cooperation, assistance, and information as the Insurer may reasonably request. While the **Insureds** shall not be required to waive any privilege, including attorney-client privilege or work product privilege, reveal any confidential information, or any privilege against self-incrimination under the Fifth Amendment, the **Insureds** shall use their best efforts to provide to the Insurer, any requested information the Insurer deems pertinent to the investigation and handling of the **Claim**. Provided, the **Insureds** inability or failure to provide such privileged or confidential information to the Insurer will not constitute a failure to comply with this provision.

The **Insureds** shall do nothing that in any way increases the Insurer's liabilities or prejudices the Insurer's potential or actual rights of recovery. The failure of any **Insured Person** to give the Insurer cooperation, assistance, and information as required hereunder shall not impair the rights of any other **Insured Person** under this Policy.

All other terms and conditions of the Policy remain unchanged.

This endorsement, which forms a part of and is for attachment to the Policy issued by the designated Insurers, takes effect on the effective date of said Policy at the hour stated in said Policy, unless another effective date is shown below, and expires concurrently with said Policy.



DEFINITION OF ADDITIONAL INSURED AMENDED ENDORSEMENT
(Add – Industry Consultant, Entrepreneur-in-Residence, Advisor, or Expert)

In consideration of the premium, the second paragraph of the definition of **Additional Insured** as set forth in Section II, Definitions of the General Terms and Conditions is deleted and replaced with the following:

2. (i) an independent contractor, industry consultant, entrepreneur-in-residence, advisor or expert; or (ii) or any natural person designated by an **Insured Entity** to serve as a director, officer, board observer, board or shareholder representative, advisor or consultant of a **Portfolio Company**, provided that such person is acting on behalf and at the specific direction of an **Insured Entity**, and only to the extent that such person is indemnified by an **Insured Entity**; or

All other terms and conditions of the Policy remain unchanged.

This endorsement, which forms a part of and is for attachment to the Policy issued by the designated Insurers, takes effect on the effective date of said Policy at the hour stated in said Policy, unless another effective date is shown below, and expires concurrently with said Policy.



**DEFINITION OF INFORMAL INVESTIGATION AMENDED ENDORSEMENT
(Add Inquiry)**

In consideration of the premium, the definition of **Informal Investigation** set forth in Section II, Definitions of the General Terms and Conditions is deleted and replaced with the following:

Informal Investigation means:

1. any informal administrative or regulatory investigation or inquiry involving an **Insured** by a **Regulatory Body**, commenced by the **Insured's** receipt of:
 - (a) a written notice to produce documents that relate to the **Insured Entity's** business activities; or
 - (b) a request for testimony or a request for an interview issued by a **Regulatory Body** directed to an **Insured Person** in his/her capacity as such; or
2. an **Internal Investigation**.

Informal Investigation shall not include any routine examinations, routine inspections, "sweep" examinations, or similar routine reviews, inspections, or audits; however, this limitation does not apply to any subsequent investigation or inquiry resulting from such a routine matter that would otherwise be included in this definition.

All other terms and conditions of the Policy remain unchanged.

This endorsement, which forms a part of and is for attachment to the Policy issued by the designated Insurers, takes effect on the effective date of said Policy at the hour stated in said Policy, unless another effective date is shown below, and expires concurrently with said Policy.



**AMEND DEFINITION OF PROFESSIONAL SERVICES CLIENT ENDORSEMENT
(Group of Customers; Unaffiliated Investment Adviser)**

In consideration of the premium, the definition of **Professional Services Client** set forth in Section II, Definitions of the General Terms and Conditions is deleted and replaced with the following:

Professional Services Client means:

1. a customer, client, or group of customers or clients; or
2. unaffiliated investment adviser or third party fund,

that has received, or has been rendered **Professional Services** by an **Insured**.

All other terms and conditions of the Policy remain unchanged.

This endorsement, which forms a part of and is for attachment to the Policy issued by the designated Insurers, takes effect on the effective date of said Policy at the hour stated in said Policy, unless another effective date is shown below, and expires concurrently with said Policy.



**DEFINITIONS OF EXECUTIVE AND LOSS AMENDED
(CCO; Fines and Penalties)**

In consideration of the premium, the Policy is amended as follows:

- I. The definition of **Executive** set forth in Section II, Definitions of the General Terms and Conditions is amended to add the following:
- **Executive** also means **Chief Compliance Officer** or functional equivalent thereof.
- II. Solely with respect to the following General Terms and Conditions, the definition of **Loss** in Section II, Special Definitions is amended to add the following:
- Loss will also include civil fines and penalties imposed upon the Chief Compliance Officer of the Insured Entity pursuant to the Investment Company Act of 1940, the Investment Advisers Act of 1940, the Securities Act of 1933, the Securities Exchange Act of 1934, the Bank Secrecy Act of 1970, or any other similar applicable statute, rule, regulation or law or foreign equivalent law; provided that such civil fines and penalties: (i) are insurable under the law pursuant to which this Policy is construed or (ii) the law which is most favorable to the Insured; provided that such jurisdiction has a substantial relationship to the relevant Insureds, to the Insurer, or to the Claim giving rise to such damages, or (iii) or if independent counsel for the **Insured** provides a written opinion that such amounts are insurable, the Insurer shall not dispute the written opinion of independent counsel for the **Insured**; and (iv) are subject to a maximum aggregate sublimit of liability of \$250,000, such amount is part of and not in addition to the Policy Aggregate Limit of Liability set forth in Item 6a of the Declarations.
- III. **Chief Compliance Officer** means a natural person appointed pursuant to Rule 206 (4)-7 under the Investment Advisers Act of 1940, Rule 38 a -1 of the Investment Company Act of 1940 and/or Section 4s(k) of the Commodities Exchange Act as the chief compliance officer of the **Insured Entity**, or the functional or foreign equivalent appointed by the **Insured Entity**, in his or her capacity as such.

All other terms and conditions of the Policy remain unchanged.

This endorsement, which forms a part of and is for attachment to the Policy issued by the designated Insurers, takes effect on the effective date of said Policy at the hour stated in said Policy, unless another effective date is shown below, and expires concurrently with said Policy.



DEFINITIONS OF FUND REGISTERED FUND AND PRIVATE FUND AMENDED ENDORSEMENT

- I. The definitions of **Fund**, **Registered Fund**, and **Private Fund** set forth in Section II, Definitions of the General Terms and Conditions, are amended as follows:
- A. **Fund** is amended to include the following:
Fund also includes a **Registered Fund** or **Private Fund** as a debtor-in-possession under United States bankruptcy law or such similar law of any other country.
- B. Subparagraph one of the definition of **Private Fund** is deleted and replaced with the following:
1. investment company (or a pooled investment vehicle, separately managed account, or single investor fund on behalf of a **Professional Services Client**):
 - (a) created or sponsored by an **Insured Entity** as of the effective date of this Policy;
 - (b) that has been terminated, merged, sold, or dissolved, including any series or portfolios of such investment company, but only for **Wrongful Acts** that occurred while such **Private Fund** was owned or managed by the **Insured Entity**;
- C. The definition of **Registered Fund** is deleted and replaced with the following:
1. any investment company registered under the Investment Company Act of 1940:
 - (a) created or sponsored by an **Insured Entity** as of the effective date of this Policy;
 - (b) which is listed on the Schedule of Registered Funds attached to this policy or in the **Application**; or
 - (c) that has been terminated, merged, sold or dissolved, including any series of portfolios of such investment company, but only for **Wrongful Acts** that occurred while such **Registered Fund** was sponsored or managed by the **Insured Entity**;
 2. past, present or future series of portfolios of any investment company described in 1(a) or (b) above; or
 3. any entity in which a **Registered Fund** has **Management Control** but only for **Wrongful Acts** that occurred while such **Registered Fund** was sponsored or managed by the **Insured Entity**, and such **Registered Fund** maintained **Management Control** over such entity.

All other terms and conditions of the Policy remain unchanged.

This endorsement, which forms a part of and is for attachment to the Policy issued by the designated Insurers, takes effect on the effective date of said Policy at the hour stated in said Policy, unless another effective date is shown below, and expires concurrently with said Policy.



**AMEND OTHER INSURANCE ENDORSEMENT
(Primary to Insured Persons' Personal Umbrella)**

In consideration of the premium, the second sentence of Paragraph 1 set forth in Section XII, Other Insurance of the General Terms and Conditions is deleted and replaced with the following:

Notwithstanding anything to the contrary above, this Policy will apply as primary with respect to any personal umbrella or personal directorship liability insurance purchased by or on behalf of an **Insured Person**.

All other terms and conditions of the Policy remain unchanged.

This endorsement, which forms a part of and is for attachment to the Policy issued by the designated Insurers, takes effect on the effective date of said Policy at the hour stated in said Policy, unless another effective date is shown below, and expires concurrently with said Policy.



AMEND CONDUCT EXCLUSION ENDORSEMENT
(Add Personal Qualifier and Foreign Jurisdiction; the Underlying Action)

In consideration of the premium, it is understood and agreed that the Policy is amended as follows:

- I. Exclusion 4, Illegal Profits/Deliberate Acts set forth in Section III, General Policy Exclusions of the General Terms and Conditions is deleted and replaced with the following:

Illegal Profits/Deliberate Acts

based upon or arising out of:

- (a) an **Insured** gaining any personal profit, remuneration, or financial advantage to which such **Insured** was not legally entitled; provided that this exclusion shall not apply to **Loss** in a **Securities Claim** attributable to actual or alleged violations of Section 11, 12, or 15 of the Securities Act of 1933, as amended; or
- (b) the committing of any deliberate criminal, or fraudulent act or omission, or any willful violation of law or regulation by an **Insured**,

established by a final non-appealable adjudication in the underlying action or proceeding other than a coverage action to determine the rights and responsibilities of any party to this Policy.

Solely with respect to paragraph (b) above, any act or omission that is treated as a criminal violation in a Foreign Jurisdiction but that is not treated as a criminal violation in the United States of America, the imposition of a criminal fine or other criminal sanction in such Foreign Jurisdiction will not, by itself, be conclusive proof that a deliberate criminal or deliberate fraudulent act occurred.

For purposes of determining the applicability of this exclusion:

- i. the conduct of an **Insured Person** shall not be imputed to any other **Insured Person**; and
- ii. only the conduct of a **Responsible Person** shall be imputed to the **Named Insured**.

- II. For purposes of this endorsement, "Foreign Jurisdiction" will mean any jurisdiction other than the United States or any of its territories or possessions.

All other terms and conditions of the Policy remain unchanged.

This endorsement, which forms a part of and is for attachment to the Policy issued by the designated Insurers, takes effect on the effective date of said Policy at the hour stated in said Policy, unless another effective date is shown below, and expires concurrently with said Policy.



**AMEND DEFINITION OF LOSS ENDORSEMENT
(FCPA and UK Bribery Act)**

In consideration of the premium, it is understood and agreed that the definition of **Loss** in Section II, Special Definitions, of the Investment Adviser Management Liability And Fund Management and Professional Liability Coverage Part is amended by deleting and replacing paragraph 2 with the following:

2. solely with respect to an **Insured Person**, penalties assessed against such **Insured Person** pursuant to the Foreign Corrupt Practices Act, 15 U.S.C. Sec. 78dd-2(g)(2)(B), 78dd(3)(e)(2)(B) and 78ff(c)(2)(B) or the Bribery Act 2010 (UK Bribery Act); and

All other terms and conditions of the Policy remain unchanged.

This endorsement, which forms a part of and is for attachment to the Policy issued by the designated Insurers, takes effect on the effective date of said Policy at the hour stated in said Policy, unless another effective date is shown below, and expires concurrently with said Policy.



ADDITIONAL INSURED ENTITY ENDORSEMENT

In consideration of the premium, it is understood and agreed that the Policy is amended as follows:

The definition of **Insured Entity** as set forth in Section II, Special Definitions, of the General Terms and Conditions Coverage part is amended by adding the following:

Insured Entity shall also mean the following entities and their **Subsidiaries**:

BX Alternative Credit Partners (as the Adviser to this JV)

All other terms and conditions of the Policy remain unchanged.

This endorsement, which forms a part of and is for attachment to the Policy issued by the designated Insurers, takes effect on the effective date of said Policy at the hour stated in said Policy, unless another effective date is shown below, and expires concurrently with said Policy.



COST OF CORRECTIONS ENDORSEMENT

In consideration of the premium paid for this Policy, it is agreed that the Policy is amended as follows:

- I. The following new Insuring Agreement is added to the Investment Adviser Professional Liability Coverage Part, Section I, Insuring Agreements:

- **Cost of Correction Coverage**

The Insurer shall reimburse the **Insured** for **Cost of Correction** the **Insured** incurs as a result of an **Event** provided that:

- (i) the **Event** was first discovered during the **Policy Period**; and
- (ii) in the absence of any correction, the **Event** would have resulted in a covered **Claim** against the **Insureds** under this Policy.

- II. Section II, Special Definitions is amended as follows:

- A. The following definitions are added to Investment Adviser Professional Liability Coverage Part:

Cost of Correction shall mean reasonable and necessary fees, costs, expenses, or damages incurred by an **Insured** solely as a result of an **Event**.

Event shall mean an operational event of an **Insured** resulting from a **Wrongful Act** by an **Insured** in the rendering or failure to render **Professional Services**.

- B. The definition of **Loss** is amended to include **Cost of Correction**.

- III. Solely with respect to the coverage afforded by this endorsement, the General Terms and Conditions, Section VII, Notice and Interrelated Claim is amended by adding the following new provision:

Cost of Corrections Notice

- As a condition precedent to any Cost of Correction Coverage, the **Insureds** must submit a written notice requesting the Insurer to reimburse **Cost of Correction** within sixty (60) days of when a **Responsible Person** first becomes aware of such an **Event**. Such notice shall be delivered to the Insurer at the address set forth in Item 4. of the Declarations.

Such notice shall include:

- a. a description of the actual, alleged, or potential **Wrongful Act** which forms the basis of the demand to pay the **Cost of Correction**;
- b. the consequences which have resulted and/or may result from such actual, alleged, or potential **Wrongful Act**;
- c. a detailed proof of loss indicating all fees, costs, expenses, and damages incurred that the **Insured** is seeking reimbursement; and
- d. any other information that the Insurer may reasonably request.

- IV. Section IV, Limit of Liability/Retention/ Indemnification/Advancement of Defense Costs of the General Terms and Conditions is amended by the addition of the following:

- There is no additional Limit of Liability provided for the coverage provided by the **Cost of Correction Coverage** Insuring Agreement. Such Limit of Liability is part of the Policy's maximum aggregate Limit of Liability for all **Loss** set forth in Item 6.a. of the Declarations. As such, any payments made under the coverage provided by the **Cost of Corrections Liability** Insuring Agreement shall further reduce the Limit of Liability provided by the Policy.
- The Retention for any **Cost of Correction** payment shall be the same Retention applicable to any **Claim** under this Coverage Part.



V. Any extended reporting period shall not apply to the coverage afforded by this endorsement.

All other terms and conditions of the Policy remain unchanged.

This endorsement, which forms a part of and is for attachment to the Policy issued by the designated Insurers, takes effect on the effective date of said Policy at the hour stated in said Policy, unless another effective date is shown below, and expires concurrently with said Policy.



COMMON CLAIM TIE-IN LIMITS ENDORSEMENT

In consideration of the premium, the General Terms and Conditions is amended as follows:

- I. Solely for the purposes of this endorsement, Section II, Definitions, is amended by adding the following definitions:

Common Claim means any **Claim** that is:

1. submitted for payment under this Policy and a **Specified Policy**; and
2. causally connected by reason of any common fact, circumstance, situation, transaction, or event, or series of common facts, circumstances, situations, transactions, or events.

Specified Policy means the following policy or policies of insurance, including any that renew, replace, or succeed such policy or policies:

Carrier	Policy Number	Named Insured Listed on Policy
Continental Casualty Company Blackstone Private Credit Fund	652038753	Blackstone Secured Lending Fund /

- II. Paragraph (a), Policy Aggregate Limit of Liability, set forth in Subsection 1, Limits of Liability, of Section IV, Limit of Liability/Retention/Indemnification/Advancement of Defense Costs, is amended by the adding the following:

In the event any **Loss** is payable under this Policy and a **Specified Policy** issued by the Insurer to the **Insureds**, and such **Loss** arises out of a **Common Claim**, then such **Loss** shall be subject to a combined maximum aggregate limit of liability under all policies in the amount of \$5,000,000.

Nothing in the preceding paragraph shall be construed to increase the Insurer's Limit of Liability under this Policy as stated in the Declarations, which shall remain \$5,000,000.

All other terms and conditions of the Policy remain unchanged.

This endorsement, which forms a part of and is for attachment to the Policy issued by the designated Insurers, takes effect on the effective date of said Policy at the hour stated in said Policy, unless another effective date is shown below, and expires concurrently with said Policy.



**AMEND OTHER INSURANCE SECTION ENDORSEMENT
(PRIMARY TO SPECIFIED POLICY)**

In consideration of the premium, paragraph 1 of Section XII, Other Insurance is deleted and replaced with the following:

1. In the event **Loss** covered under this Policy is also covered under any other valid and collectible insurance policy, then this Policy will apply as excess of the applicable retention and limit of liability of such other policy, unless such other insurance is written specifically as excess insurance of the Limits of Liability provided by this Policy. Notwithstanding the foregoing, this Policy will apply as primary with respect to:
 - (a) any personal umbrella or personal directorship liability insurance purchased by an **Insured Person**;
or
 - (b) Policy # 03-590-66-17 bearing National Union Fire Insurance Company of Pittsburgh, PA issued to Blackstone Inc. and Blackstone Group Management LLC(including any other policy which is a direct or indirect renewal or replacement of such policy).

All other terms and conditions of the Policy remain unchanged.

This endorsement, which forms a part of and is for attachment to the Policy issued by the designated Insurers, takes effect on the effective date of said Policy at the hour stated in said Policy, unless another effective date is shown below, and expires concurrently with said Policy.